National Qualifications 2022

2022 Modern Studies

Advanced Higher

Finalised Marking Instructions

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General marking principles for Advanced Higher Modern Studies

Always apply these general principles. Use them in conjunction with the detailed marking instructions, which identify the key features required in candidates' responses.

(a) Always use positive marking. This means candidates accumulate marks for the demonstration of relevant skills, knowledge and understanding; marks are not deducted for errors or omissions.

(b) If a candidate response does not seem to be covered by either the principles or detailed marking instructions, and you are uncertain how to assess it, you must seek guidance from your team leader.

(c) Where a candidate does not comply with the rubric of the paper and answers three, 30 mark questions in one section, mark all responses and record the better mark.

(d) Marking must be consistent. Never make a hasty judgement on a response based on length, quality of handwriting or a confused start.

(e) Use the full range of marks available for each question.

(f) The detailed marking instructions are not an exhaustive list. Award marks for other relevant points.

(g) Award marks only where points relate to the question asked. Where candidates give points of knowledge without specifying the context, award marks unless it is clear that they do not refer to the context of the question.

Marking principles for each question type

For each of the question types the following provides an overview of marking principles.

The extended-response questions used in this paper are

- **discuss . . .** **30 marks**
- **to what extent** . . . (research method) **15 marks**
- **to what extent** . . . (source stimulus) **15 marks**

Discuss . . . questions
Candidates explore ideas about a contemporary issue. They gain marks for analysing, synthesising and evaluating different views and evidence to support a line of argument, leading to a conclusion.

Candidates support their line of argument by drawing on their knowledge and understanding of the issue. They include comparison of the issue in the UK and Scotland with relevant international examples.

To what extent . . . (research method) questions
Candidates draw on their knowledge and understanding of social science research to make an overall judgement on the suitability of given research methods.

Candidates may gain marks in a number of ways, and are expected to include the following:

- analysis of the key ethical/practical aspects of using the research method in a given scenario
- evaluation of the relative suitability of research methods for researching a given scenario, supported with contemporary/relevant evidence
- supporting knowledge about social science research methods
- a line of argument leading to an overall judgement on the suitability of a research method.

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To what extent . . . (source stimulus) questions
Candidates draw on their knowledge and understanding of social science research to make a judgement on the potential trustworthiness of a source.

Candidates may gain marks in a number of ways, and are expected to include the following:
- analysis of the source to identify key aspects* which affect validity/reliability
- evaluation of the reliability/validity of the source in the context of social science research, supported with contemporary/relevant evidence
- supporting knowledge about conducting social science research
- a line of argument leading to an overall judgement.

*Key aspects may include:
- provenance
- source evidence
- source errors
- omissions from the source
- bias
- specific issues relating to the source.

'Contemporary' refers to the extent to which something is up-to-date.
With regards to viewpoints or arguments, this represents the most relevant, or currently accepted, thinking. Therefore, while viewpoints on Scottish independence are likely to change very quickly, contemporary thinking about the effects of inequality may include theorists who wrote decades ago.

With regard to evidence, it should also be up-to-date. For example, referring to HM Chief Inspector of Prisons' Annual Report for 2007/2008 may be considered out-of-date unless there is a specific, relevant point to be made from that year, or a trend/pattern/comparison is being established.

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Marking grids for 30 mark questions

Analysis
Analysis involves identifying various aspects, the relationship between them, and their relationships with the whole. It can also involve drawing out and relating implications.

Award analysis marks where a candidate uses their knowledge and understanding, or evidence from a source, to identify relevant aspects (for example of an idea, theory or argument), and clearly shows at least one of the following:

- links between different aspects
- links between aspect(s) and the whole
- links between aspect(s) and related concepts
- similarities and contradictions
- consistencies and inconsistencies
- different views or interpretations
- possible consequences or implications
- understanding of underlying order or structure.

0 marks	1–2 marks	3–4 marks	5–6 marks	7–8 marks
• candidate provides no evidence of analysis (purely descriptive response). **OR** • analysis is not relevant to the question. For analytical comments to be relevant they must directly address either the question; or issues, arguments or evidence which the question addresses.	Candidate makes relevant analytical comments **but** • in the context of their answer, these may not be the key, or most relevant, aspects.	Candidate makes developed, relevant analytical comments **and** • in the context of their answer, these are the key, or most relevant, aspects • includes relevant, contemporary supporting evidence.	Candidate meets the criteria for **4 marks and** • links analytical comments to evaluative comments • includes relevant and contemporary supporting evidence from an international comparator country. Overall, analysis shows understanding of the question and its implications, by inclusion of sufficient key or most relevant aspects.	Candidate meets the criteria for **6 marks and** • analytical comments are integrated in-depth with international comparison • analytical comments clearly integrate the ideas and arguments of others with their own. Overall, analysis shows an in-depth understanding of the question and supports a convincing line of argument.

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Comparison Comparison involves making a judgement between two (or more) entities in order to show similarity or difference. Candidates must draw out key similarities/differences and show the extent of these.			
0 marks	**1–2 marks**	**3–4 marks**	**5–6 marks**
No evidence of relevant international comparison.	Candidate's comparison • explains a key, relevant difference or similarity between the issue in the UK/Scotland and in another country/countries • explains the extent of the difference/similarity.	Candidate's analysis meets the requirements for **2 marks** and in addition • points of comparison, including the extent of the similarity or difference, are made throughout their response and are supported by relevant and contemporary evidence.	Candidate's evaluation meets the requirements for **4 marks** and in addition • points of comparison are integrated into and form a key part of their line of argument.

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Evaluation
Evaluation involves making a judgement(s) based on criteria.
Candidate should make reasoned evaluative comments on factors such as evidence that supports their line of argument, and evaluate alternative arguments.

Evaluative comments must relate to, for example:
- the extent to which a viewpoint or argument is valid
- the extent to which a viewpoint or argument is supported by evidence
- the relative importance of factors in relation to the issue
- the impact or significance of factors when taken together
- the relative value of alternative arguments.

0 marks	1–2 marks	3–4 marks	5–6 marks	7–8 marks
• candidate provides no evidence of evaluation (purely a descriptive response). **OR** • candidate's evaluation is not relevant to the question.	• candidate makes points of evaluation that are relevant to the question but are not developed. **OR** • candidate makes a basic evaluation that is developed and relevant.	Candidate meets the criteria for **2 marks and** • makes reasoned points of evaluation • relates points to their line of argument and uses them to make an overall judgement(s) on the question.	Candidate meets the criteria for **4 marks and** • shows reasoned consideration of alternative arguments and evidence • provides reasoned evaluation and judgement of an alternative argument(s) or evidence.	Candidate meets the criteria for **6 marks and** • integrates points of evaluation throughout their line of argument • uses reasons for discounting or accepting alternatives to clearly support their overall conclusion.

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Synthesising information to structure and sustain lines of argument
Synthesis involves drawing two or more pieces of information — knowledge, evidence or viewpoints — together to support a structured line of argument.

A line of argument involves bringing together or linking points in a coherent manner, building towards a conclusion. Candidates' conclusions should go beyond a summary of key issues, and their reasoning and evidence should build to a relevant overall judgement that addresses the specific question. A relevant conclusion with detailed supporting reasons should demonstrate knowledge and understanding of the complex issue, which should include alternative viewpoints. Candidates may include conclusions throughout an extended response, and/or within one separate concluding section.

A well-reasoned conclusion will include:
- clear evidence that a conclusion has been reached
- includes detailed reasons to justify the conclusion.

0 marks	1–2 marks	3–4 marks	5–6 marks	7–8 marks
Candidate provides no evidence of • a line of argument • a clear conclusion.	Candidate draws together pieces of information to summarise key points **but** • there is a lack of sufficient synthesis to support the conclusion • the line of argument in support of the conclusion is unclear.	Candidate shows evidence of • an overall conclusion which provides an overall judgement of the question • a line of argument and is supported by detailed reasons/evidence.	Candidate meets the criteria for **4 marks and** shows evidence of • an overall conclusion from a sustained line of argument developed by organising, linking or sequencing ideas throughout the response • an overall conclusion that includes a response to at least one relevant counter-argument.	Candidate meets the criteria for **6 marks and** • their line of argument integrates points of analysis and evaluation, which they use to support their overall judgement • their overall judgement is based on several points of analysis or evaluation.

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Marking grids for 15 mark (research method) questions

Analysis — award up to a maximum of 6 marks			
0 marks	**1–2 marks**	**3–4 marks**	**5–6 marks**
No evidence of analysis — purely descriptive response. **OR** Analysis is not at all relevant to the question.	Candidate's analysis identifies aspects of the research method which are relevant to the question **but** • does not identify the most relevant aspects **OR** • does not link the aspects to the scenario. Alternatively Award **2 marks** where analysis identifies only **one** key aspect and links the aspect with the issue in the scenario.	Candidate's analysis identifies key aspects of the research method which is relevant to the question **and** • identifies relevant links of key aspects to the research method • includes relevant and contemporary supporting evidence.	Candidate meets the criteria for **4 marks and** • links analytical comments on the aspects to evaluative comments. Award full marks where analysis shows understanding of the question and its implications, by linking sufficient key or most relevant aspects with knowledge of social science research methods.

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Evaluation (research methods) — award up to a maximum of 6 marks			
0 marks	**1–2 marks**	**3–4 marks**	**5–6 marks**
No evidence of evaluation (purely descriptive response). **OR** Evaluative points are not relevant to the question. **OR** Evaluative comments lack reasoning.	Candidate makes points of evaluation about the suitability of the research method in question **but** • supporting evidence doesn't back up the evaluation • lack of development in reasoning **OR** • only one developed*, relevant point of evaluation is made which has supporting evidence. *Developed points may include, for example: • evidence • reasons • background information, support or reinforcement. Award **a maximum of 1 mark** where the reasoning is not developed or the candidate makes only **one** evaluative point.	Candidate makes developed, relevant points of evaluation about the suitability of the research method in question and in addition • evaluative comments clearly address the stated research method(s) in relation to the specified scenario • addresses the potential effectiveness of the key stated research method in relation to the specified scenario.	Candidate meets the criteria for **4 marks and** • addresses ethical issues in relation to the key stated research method(s) • where there is only **one** stated method the candidate also evaluates their own alternative method, or combination of methods, of researching the issue **OR** • where there are **two** stated methods the candidate evaluates both methods and/or their own alternative method, or combination of methods, of researching the issue.

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Conclusion — award up to a maximum of 3 marks			
0 marks	**1 mark**	**2 marks**	**3 marks**
No evidence of concluding remarks.	• concluding remarks simply summarise the key elements or main points.	• the conclusion follows from a line of argument and is supported by reasons/evidence • it is clear which research method is preferred in relation to the specified scenario.	Candidate meets the criteria for **2 marks and** • their line of argument integrates points of analysis and evaluation, using these to support the overall judgement • their reasons for preferring/rejecting the research methods are clear.

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Marking grids for 15 mark (source stimulus) questions

Analysis of a source — award up to a maximum of 6 marks			
0 marks	**1–2 marks**	**3–4 marks**	**5–6 marks**
No evidence of analysis — purely descriptive response. **OR** Analysis is not relevant to the question.	Candidate's analysis identifies aspects which are relevant to the question **but** • does not identify most relevant aspects **OR** • does not show relevant links. Alternatively Analysis identifies only one key aspect **and** • links the aspect with the trustworthiness of the source • includes supporting evidence.	Candidate's analysis identifies key aspects which affect trustworthiness of the source **and** • identifies relevant links • includes relevant supporting evidence.	Candidate meets the criteria for **4 marks and** • links analytical comments on the aspects to evaluative comments. Award full marks where a candidate's analysis shows understanding of the question and its implications by linking sufficient key or most relevant aspects with knowledge of social science research.

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Evaluation of trustworthiness — award up to a maximum of 6 marks			
0 marks	**1–2 marks**	**3–4 marks**	**5–6 marks**
No evidence of evaluation (purely descriptive response). **OR** Evaluative points are not relevant (do not refer to the source). **OR** Evaluative comments lack reasoning.	Candidate makes reasoned points of evaluation about the trustworthiness of the source **but** • there is lack of development in reasoning **OR** • they make only one developed*, relevant point of evaluation about the source, which has supporting evidence. *Developed points may include, for example: • evidence from the source • evidence from other social science research • reasons • background information about conducting social science research.	Candidate makes at least **two** developed* points of evaluation which • address the strengths and weaknesses of the source • are used to support a reasoned overall judgement(s) • are supported by knowledge about conducting social science research.	Candidate meets the criteria for **4 marks and** • judgements on strengths and weaknesses are supported by reference to relevant additional research/sources (this may include candidate's own research) • the judgement includes consideration of alternative approaches which may increase the trustworthiness of the source.

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Conclusion — award up to a maximum of 3 marks			
0 marks	**1 mark**	**2 marks**	**3 marks**
No evidence of concluding remarks	Concluding remarks simply summarise the key elements or main points.	There is a clear overall judgement about the trustworthiness of the source. The conclusion follows from a line of argument and is supported by reasons/evidence.	Candidate meets the criteria for **2 marks and** • their line of argument integrates points of analysis and evaluation, using these to support the overall judgement expressed within the conclusion.

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Marking instructions for each question

Section 1 — Political issues and research methods

Question			Max mark	Detailed marking instructions for this question
1.			30	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • function and purpose • relationships with political parties and government • insider and outsider role in government • influence and effectiveness • factors influencing power of groups (popular support, celebrity endorsement, media, finance) • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Interest groups can use the media either by purchasing so-called advertorials or through making news in some way. Each method has its strengths and weaknesses. While paid media makes it easier to control the content, citizens tend to discount the legitimacy of paid messages. Earned media is the direct opposite of paid media in these respects. While citizens are more likely to trust news reports than paid advertisements, the content of news media coverage is more difficult to control. Media coverage can help influence government decisions, but it may also backfire, with groups, positions and politicians sometimes not being covered in the best light. Despite the possible disadvantages of possible (negative) media interest, many interest groups try to advance their policy and political goals by working with journalists. Interest group representatives who understand this provide factual and timely information to journalists, while perhaps focusing on information that supports their group's viewpoint.* **This example contains basic analysis of a key aspect with relevant, evaluation but lacks significant contemporary supporting evidence.** **Response 2** *Affluent interest groups are often said to enjoy a greater capacity to influence policy when compared to economically deprived groups. By using their financial resources, wealthy lobby groups can determine policymaking in their favour but sometimes at the expense of citizen interests. Financial wealth enables lobby groups to hire personnel who, in turn, can collect, process and communicate valuable information to policymakers. However, lobbyists with the most financial backing can also fail to procure meaningful policy victories, such as was the case for example with the failure of The Transatlantic Trade and Investment Partnership (*TTIP*), which was backed by big business on both sides of the Atlantic. Therefore, spending more money does not always result in more policy influence for interest groups. Media attention on policy issues will determine whether wealthy interest groups wield disproportionate influence. If a policy issue is mostly discussed behind the scenes and key stakeholders and the news media remain quiet, rich lobby groups find it easier to affect policy outcomes. However, less wealthy groups can try*

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Question			Max mark	Detailed marking instructions for this question
				and exert more influence once media attention increases. Under such circumstances, other types of policy resources become more important for policymakers. For policy issues attracting high levels of media attention, policymakers will prefer political over technical information. When fighting a lobbying battle in the public spotlight, the ability to speak on behalf of the broader public, to devise catchy slogans and mobilise grassroots campaigns becomes more important than lobbyists' economic capacities. This is exemplified by Marcus Rashford's campaign to source public funding to support families experiencing poverty. This forced a reversal of public policy due to public support generated through media interest. This suggests policymakers are influenced by information that comes their way through the media and that interest groups are important sources of information for the media. **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *Since the UK political system is dominated by the executive many pressure groups seek insider status in order to enhance their power. This insider status is most likely to be achieved if a pressure group is able to provide advice which helps government decision-making, have objectives which match the government's or campaign on an issue widely supported by the public. Sometimes governments may also be forced to treat a group as an insider if they are powerful and could undermine government policy. For example, the British Medical Association (BMA) have a large membership of highly-skilled members with a lot of funding and can sometimes offer government valuable information. During the COVID-19 pandemic the government drew on the expertise of the BMA to help direct policy. Similarly in France the National Federation of Nurses have worked closely with the government during the COVID-19 pandemic and in supporting compulsory vaccinations for caregivers.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Some observers of interest groups argue a structure of persuasion has been built in the UK, whose purpose is to replace civic power with the power of money. One group who represent this is the Policy Exchange, the lobby group that Boris Johnson's government uses most. While it claims to be a neutral charity, it was founded in 2002 by the Conservative MPs Francis Maude and Archie Norman, and Nick Boles, who later also became a Tory MP. Its first chairman was Michael Gove and its proposals and personnel have been adopted by the Conservative Party ever since. Policy Exchange has played an important role in shifting power away from rival institutions and into the prime minister's office. As a consequence of possessing 'insider status' with the Conservative government and having many shared interests and personnel who have ties with the Conservative Party and government, the Policy Exchange wields strong powers to influence government policy and legislation in the UK which it uses to further its ideological agenda. Similarly, in the US the National Rifle Association (NRA), who previously donated to and endorsed both Democrat and Republican candidates, have become much more firmly aligned and entrenched with the Republican Party.*

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Question			Max mark	Detailed marking instructions for this question
				For example, in 1992 the NRA contributed 37% of its budget to the Democrats but by 2016 was donating 99% of its $50 million campaign donations to Republicans. The NRA also wields indirect influence via its politically engaged membership of around four million, many of whom will vote one way or another based on this single issue. The NRA also publicly grade members of Congress from A to F on their perceived friendliness to gun rights with ratings having had a serious effect on poll numbers and even costing pro-gun control candidates their seats. However, since 2016 NRA political spending and influence has declined with 2018 being the first election where gun control groups were estimated to have outspent the NRA. Coupled with a congress controlled by the Democrats who owe little to NRA political contributions and polls showing that 55% of the US public think the NRA's policies are dangerous for the US, it is apparent that the NRA's status has shifted to make them outsiders with less influence on policymaking under the Biden administration. Overall, it is clear that groups with insider status exert more influence over government decision-making than those considered to possess outsider status. However, this conferred status and therefore influence is fluid and may change as public opinion shifts and political administrations change. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *It can be concluded that clearly all interest groups share a desire to affect government policy to benefit themselves or their causes. Their goal could be a policy that exclusively benefits group members or one segment of society, for example, government subsidies for farmers, or a policy that advances a broader public purpose, for example, improving air quality. They attempt to achieve their goals by lobbying, that is, by attempting to bring pressure to bear on policy makers to gain policy outcomes in their favour. Media attention offers significant opportunities for affluent lobby groups to reap the political benefits of their economic wealth in terms of influencing public policy. However, media attention and public scrutiny of policy issues can counterbalance the power of these groups. This is particularly relevant to counter the concern that only money buys power and influences government decision-making.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *An interest group's own organisation will influence its powers where that group are well supported, well financed and well led and therefore more likely to be effective. A large membership also means that members can help more effectively with activities surrounding lobbying government and the media to generate popular support. Conversely, small local pressure groups concerned with small scale local issues such as hospital or school closures can be effective even with small memberships if they generate media and popular support. Therefore, quality of membership may sometimes be as in important as the quantity. Large pressure groups seeking to involve themselves in national political campaigns will require large amounts of money to employ experts and administrators and to finance expensive advertising in the mass media. They also require*

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Question			Max mark	Detailed marking instructions for this question
				knowledgeable, authoritative and probably charismatic leaders who can deal effectively with government ministers, civil servants and the mass media and who can also help to enthuse existing members and attract new ones. Some outsider pressure groups have nevertheless been able to exercise considerable influence over government policy when they are campaigning on an issue which has widespread public support as in the case of support for the provision of free school meals. The nature and extent of mass media coverage of pressure group activity may therefore have a major impact on its effectiveness. Where interest groups encounter political bias opposed to their objectives they may opt for unconventional publicity stunts, for example, Extinction Rebellion, large demonstrations and perhaps more confrontational direct action as measures of seeking publicity whilst balancing this with the knowledge that such activities may sometimes receive unfavourable media coverage and result in a loss of public support. Overall, pressure groups representing business and financial interests and the wealthier members of society are more likely to be well organised, well financed and granted insider status by governments on important matters of policy which appears to provide support for theories of Marxism rather than democratic pluralism. **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
2.			30	*Candidates can be credited in a number of ways up to **a maximum of 30 marks**.* **Credit responses that refer to:** • function and relevance • internal democracy and policymaking • membership and activism • influence of smaller parties • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *The emergence of informal groups within political parties threatens the relevance of parties as they allow rich donors rather than the party to shape and determine policy direction. The Covid Recovery Group (CRG) posed the greatest threat of rebellion over the Conservative government's policies on lockdown. It is believed that the groups had formed because there are whole areas of policy where 'Johnsonism' did not have a clear stance. The CRG, using thousands of pounds' worth of donations from a secretive organisation, commissioned reports and held official briefings for journalists and MPs and employed researchers in charge of communications to challenge the Conservative Party leadership and policies. The emergence of such internal groups such as the CRG weakens the traditional ideology and structure of political parties which weakens the grassroots involvement and influence.* **This extract contains development of a key aspect related to the question, supporting evidence, limited analysis and evaluation and a reasoned judgement based on the evidence presented.** **Response 2** *Grassroots party membership suggests that political parties are still relevant today. For example, the Labour Party is estimated to have over half a million members, by far the most of any political party in the United Kingdom, while the Conservatives, the Scottish National Party (SNP) and the Liberal Democrats all have membership that number over 100 thousand. In fact, the SNP's membership base is the largest of any of the Scottish political parties and, by head of population, the largest in the UK overall. However, pressure groups remain the key vehicle in the UK and pluralistic societies in terms of participation and influence for many citizens. Across the UK nearly 4.5 million people, or one in ten UK adults, are a member or supporter of Britain's environmental and conservation groups, suggesting that pressure group membership is more relevant with many young voters alienated from mainstream party politics today. This has also coincided with the presidentialisation of UK politics with party leaders being perceived as more influential than the parties they represent. Party leaders have become the human face of election campaigns as seen in 2019 with the fixation on Boris Johnson and Jeremy Corbyn. According to Curtice, many voters now vote for their preferred party leader rather than party policies. All of this suggest that political parties, while remaining influential, have seen their relevance dwindle in recent years as personality and opportunities to participate in political causes, unincumbered by election cycles, has become more attractive than party politics.*

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Question			Max mark	Detailed marking instructions for this question
				This example contains analysis of a key aspect with relevant, detailed contemporary supporting evidence and accurate evaluation. **Comparison** **Response 1** *The continued dominance of the two-party system in the UK and the US suggests that political parties are not in fact reasserting their relevance but that the main party system continues to operate and exert much the same influence and relevance it always has. In the UK, Labour and the Conservatives have dominated representation at Westminster and together have formed part of every government since 1945. For instance, in 2021 Labour and the Conservatives collectively amassed more than 75% of the vote, gaining almost 90% of the seats. Similarly, during this period, in the US the Republican and Democratic parties have continued to dominate representation and governance at Federal level in the Senate and House of Representatives as well as the Presidency. President Biden's election as President continues the pattern of two-party domination of the executive as does the composition of the 117th Congress where all representatives belong to or caucus with the Republicans or Democrats.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *The breakthrough of smaller, third parties in recent years shows that political parties still remain relevant. For example, in Scotland the Green Party has emerged as a strong political force, gaining eight MSPs after the 2021 Scottish Parliamentary elections and going into a power-sharing agreement with the SNP which also saw them take on responsibility for two ministerial portfolios in the Scottish Government. A similar story is that of La République En Marche! (LREM), a centrist political party with pro-European liberal views, in France. In late 2018, it affiliated itself with the Alliance of Liberals and Democrats for Europe (ALDE), a European party family. Despite its newness, the party won France's 2017 presidential and parliamentary elections. Likewise, reactionary forces and political demands saw the formation of a new left-wing political party in Spain in 2014, Podemos, which quickly gained popularity with its anti-establishment stance and is the second largest party in Spain, at least in terms of the membership of its online portal, which currently stands at more than half a million people. Nevertheless, in authoritarian regimes political parties are irrelevant and often nothing more than convenient window dressing for perpetuating authoritarianism. For example, United Russia, the party of President Vladimir Putin, has exercised a stranglehold on power since its formation in 1999. After elections in 2021 they held 324 of 450 seats and continue to dominate commissions, committee chairmanships and steering committees in the Duma. However, United Russia have saw their support decline recently and 2021 was the first time five parties have been represented in the Duma, suggesting perhaps parties are more relevant than they have been previously. Overall, political parties are relevant as they give legitimacy to the political systems they operate within and allow voters to express satisfaction or dissatisfaction with the dominant group. The increased representation of smaller parties in recent years across a different range of political systems suggests their relevance is undergoing a resurgence.*

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Question			Max mark	Detailed marking instructions for this question
				This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and other countries. **Conclusion** **Response 1** *Political parties play a key function in democracies by providing candidates, educating and informing the electorate and providing policies and governments in waiting which will always make them relevant and necessary. However, the declining levels of membership amongst almost all political parties, which has also coincided with a sharp increase in interest group membership and online activism, suggests that claims that parties are reasserting their relevance and influence is exaggerated.* **This example contains a basic conclusion and provides an overall judgement supported by reasons/evidence.** **Response 2** *Political parties will always have a relevance due to their role and function in providing representation, recruiting potential representatives, offering a point of participation for citizens, forming governments, generating policy ideas, and facilitating elections. Nevertheless, as can be seen in both political systems across the Atlantic in recent times, the 'party' has been overtaken by dominant personalities, internal factions and entryism. This is evidenced by the rise of Corbynism and Momentum within the Labour Party, Boris Johnson and Brexiteers taking control of the Conservative Party and the Tea Party and Donald Trump's takeover of the Republican Party. As a consequence, the 'party' has lost control and according to some have become vehicles for the politically ambitious. This has coincided with a decline in trust in political parties and an increase in the influence of rich donors. Many commentators argue that 'the party is over' and that a radical overhaul of political funding is needed along with measures to reduce gerrymandering of electoral boundaries to re-establish political parties as reliable actors within our political systems.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
3.			30	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • key features of each ideology: – role of the state – views on human nature – sovereignty – freedoms or human rights – the economy • relevant theorists: – liberalism: Locke and Mill – conservatism: Burke and Disraeli – socialism: Marx and Lenin – nationalism: Mazzini and Von Herder • comparative analysis of similarities and differences between ideologies or other relevant contemporary ideologies • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Aspects of liberalism are used by Marxists and Marxist elements by liberals. They have borrowed from each other, as society changes. Thus, a liberal such as Boris Johnson facing the crises within society such as that during the Covid-19 pandemic had to introduce some of the structural and collectivist policies such as the furlough scheme and place limitations on individual freedoms and liberty more prominent in Marxist thinking.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *Liberalism espouses a wide range of views and encompasses ideas including fair elections, free trade, private property, capitalism, constitutionalism, liberal democracy, free press and free religious expression. John Locke, credited with the creation of liberalism, argued that the rule of law should replace both tradition and absolutism in government; that rulers were subject to the consent of the governed; and that individuals had a fundamental right to life, liberty, and property. Although the term 'right-wing' originally designated traditional conservatives and reactionaries, it has also been used to describe neo-conservatives, nationalists, Christian democrats, and classical liberals. Conservatism is a social and political philosophy that supports retaining traditional social institutions and has many modern variations. Classical liberalism has no party-political home and, therefore, shares many similarities with other ideologies, as traces of it can be found in all major parties. This is due to the fact that 'classical' liberalism is not a fixed ideology, but a spectrum of views on social, economic and political issues, grounded in a belief in freedom and an aversion to the coercion of one individual by another. The adoption of liberal ideals and policies by a range of political parties across the political spectrum therefore illustrates it is both distinct and shares similarities with many other ideologies, particularly modern conservatism. This was illustrated in 2013 when the same-sex marriage act was introduced by the Conservative — Lib Dem coalition.* **This example contains analysis of a key aspect with relevant, detailed contemporary supporting evidence and accurate evaluation.**

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Question			Max mark	Detailed marking instructions for this question
				Comparison **Response 1** *In the UK ideological similarities between liberalism and conservatism have been most closely illustrated by the Conservative – Lib Dem coalition between 2010-2015. Whilst in power together the Conservatives supported the largely liberal legislative policies such as the pupil premium policy and a referendum on electoral and constitutional reform, while the Lib Dems supported welfare reform suggesting that there were overlapping areas of ideology. In the US there are also ideological overlaps between Republicans and Democrats. For example, blue dog Democrats find common ground and bipartisan solutions with Republicans on areas they share similar views including fiscal responsibility and national defence.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Liberalism has been associated with complexity in terms of policy making and having a broader perspective than conservativism which may explain the tendency of liberals to support immigration policy, and policies that benefit racially diverse groups. This places the contemporary Liberal Democrats and the Conservative Party at distinctly different positions when their ideologies and policies surrounding immigration and its potential harm to the economy place them poles apart and place the Conservatives closer to both UKIP and the Brexit Party as well as Donald Trump's Republican Party. This suggests that perceived threats to the national interest will pull liberals and conservatives in opposite directions, creating greater differences between their policy preferences. Conversely, in policy areas that are less threatening to the national interests there will likely be greater ideological similarity between liberalism and conservatism. According to Haidt & Graham this divergent approach suggests that liberals and conservatives differ in terms of underlying political, moral, and religious values but that no differences between liberals and conservatives are expected when attitudes are not based in politics, morality, or religion. These different underlying political values are what drive differences between liberals and conservatives. For example, liberals in America tend to support more gun restrictions, as they believe people are being harmed by guns. By contrast, conservatives disagree, instead believing people will be harmed if their guns are taken away. So, although the idea of harm is accepted by both ideologies, what liberals and conservatives view as harmful varies. Therefore, it is valid to conclude that liberalism shares similarities with other ideologies such as conservatism but that the extent of this similarity depends upon the issue under review. Issues or situations that highlight moral, political or religious values, or harm, increase the extent to which liberals and conservatives differ while topics that are apolitical, less morally or religiously relevant and perceived as less harmful, will likely be topics where ideological similarities intersect.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country evaluation of their similarities/differences and evaluation of the validity of alternative arguments.**

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Question			Max mark	Detailed marking instructions for this question
				Conclusions **Response 1** *Social democracy is arguably a bigger influence within the UK Labour Party and UK political system and represents an acceptance of liberalism that socialism rejects. Many non-mainstream political movements, especially environmentalism and feminism, are underpinned by socialist values. The historical revolutionaries in America and France used liberal philosophy to justify the armed overthrow of what they saw as tyrannical rule. These evolved governments established around liberalist political ideology in nations across Europe, Latin America, and North America. Many survive today, thus suggesting that liberalism does share many similarities with other ideologies.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *In the UK, despite disagreement between liberals and socialists on notions of individualism versus collectivism, competition versus cooperation and private property versus common ownership both have an optimistic view of humanity and both see history as progress toward something better, with socialists seeing this as requiring a revolution and change in the social order while liberal believe this is best achieved by reform under the guidance of government. In the US common ground exists between Democrats and Republicans on liberal conservatist principles such as respect for contracts, defence of private property and free markets and a belief in natural inequality, the importance of religion and limited, representative government. Ideological differences between the two main parties occur mainly over concerns regarding the appropriate amount of government intervention in the economy or in social behaviour. Furthermore, terms which were once considered distinct such as 'progressive' and 'liberal' are now used interchangeably. However, those who consider the terms separate may say that liberals believe in protecting previously disadvantaged groups from discrimination, while progressives believe it's the government's job to address past wrongs and reform the systemic issues that caused those disadvantages in the first place. It is therefore reasonable to suggest that liberalism shares ideas with both conservatism and socialism, whilst disagreeing on the means to achieve these and, simultaneously, holding fundamentally opposing views on other matters with both.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
4.			30	Candidates can be credited in a number of ways up to **a maximum of 30 marks.** **Credit responses that refer to:** • liberalism, conservatism, socialism, nationalism, or any other relevant political ideologies' influence on: – human rights and civil liberties – security – national sovereignty – taxation – welfare – economic policy – authority and power – political representation • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *During the COVID-19 pandemic UK government ministers stated that their COVID-19 policy was 'guided by the science.' Ministers formed strong relationships with key scientific advisors, relied on evidence from their Scientific Advisory Group for Emergencies (SAGE), and ignored or excluded many other sources. This included traditional political ideological stances such as right-wing individualist and left-wing collectivist approaches. This can be evidenced by analysing SAGE minutes, and oral evidence to House of Commons committees which showed consistency between SAGE advice and UK government policy in the run up to the first lockdown. Ministers relied on their advisers to define the policy problem and identify solutions throughout this period.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *The new Frontiers Research Topic 'Politics of Expertise' (2021) series analysed whether traditional political ideological stances or government experts influenced the UK government's policy approaches. It concluded that the latter dominated UK government decision-making during the pandemic. UK government ministers stated frequently that their COVID-19 policy was based on scientific evidence. For example, Prime Minister Boris Johnson argued that 'At all stages, we have been guided by the science, and we will do the right thing at the right time.' In practice, ministers sought very specific sources of expertise to inform policy and boost the credibility of policymakers by 'the science', usually a small group of government scientific advisors. Senior ministers formed close professional relationships with advisers including the UK government's Chief Scientific Adviser and chair of the Scientific Advisory Group for Emergencies (SAGE), Sir Patrick Vallance, and Chief Medical Officer, Professor Chris Whitty. They also relied heavily on evidence from SAGE, particularly during the UK government's initial responses to COVID-19. Both expert sources had a strong influence on how UK government ministers understood, addressed, and described COVID-19 policy before and during the UK's 'lockdown' from late March 2020. Most other expert sources did not enjoy this impact.*

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Question			Max mark	Detailed marking instructions for this question
				Therefore, government decision-making was dominated by a small core of experts and not by traditional political party ideologies. This understanding of government reliance on science advisors helps to demonstrate that, contrary to much criticism by outsider advisers, ministers used scientific advice to inform COVID-19 policy at the expense of traditional political party ideology. **This example contains analysis of a key aspect with relevant, contemporary supporting evidence, analysis from relevant political literature, and accurate evaluation.** **Comparison** **Response 1** *The impact of political ideology can vary depending on public policy and global contexts. In the UK, COVID-19 implications softened political party ideologies in favour of pragmatism in order to meet socio-economic needs. This was evidenced by the Conservative government implementing restrictions on civil liberties and adopting interventionist economic policies to tackle health and economic problems resulting from tackling the COVID-19 pandemic. Meanwhile, in the US Donald Trump's more right-wing, libertarian influenced populist ideology initially saw his administration downplay the threat of COVID-19 before events forced both federal and state government interventions and stimulus packages to fight the pandemic and its economic impact.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Traditionally the left–right political spectrum in the UK has had an impact on dominating government decision-making. However, the Conservative Party has presented conservative economic thinking under Boris Johnson as a rejection of Thatcherism. Statements about 'levelling up' and Rishi Sunak's stimulus package in response to the COVID-19 pandemic are evidence of this new, less ideological approach to the economy. For example, in the UK during COVID-19 the Conservative government adopted numerous interventionist economic policies to support businesses and workers. These measures were intended to keep businesses afloat and keep as many people as possible employed by financially supporting businesses, workers and the wider public during the pandemic. Measures included the furlough scheme which ran until October 2021 and started off by paying 80% of workers' wages, the Self-Employment Income Support Scheme (SEISS) as well as loans and finance for businesses which totaled £250 billion for 2020-2021. In Australia a similar approach was taken by a traditionally individualistic orientated government. Between March 2020 and September 2021, the Australian government implemented policies costing $311 billion in health and economic support which supported measures such as JobKeeper and JobSeeker supplements and free childcare packages. These apparently interventionist approaches may be influenced by the global economy but suggest that there are no longer significant differences between right-wing and left-wing in terms of economic policies. In fact, many commentators suggest the economic left–right dimension may no longer be sufficient to describe how ideology affects governments' actions, especially in the economic sphere.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.**

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Question			Max mark	Detailed marking instructions for this question
				Conclusions **Response 1** *Therefore, recent years have been and will continue to be full of challenges for governments. No country was spared from the COVID-19 pandemic or the related economic, educational, and national security crises. Issues of climate change have also become more acute than they already were, with a record number of natural disasters, including fires, hurricanes, and droughts as well as geopolitical instability becoming a shared experience within and across nations, affecting countries that have been fragile but were once were viewed as stable democracies. Citizens and businesses are increasingly looking to their governments to help them deal with these large-scale, complex problems. Although the challenges governments face are universal, how they go about tackling them varies significantly depending on the government, the economy, and the dominant ideology in each political system.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *It can be concluded that political ideology has an appreciable effect on public policies, but this may be constrained by popular support for progressive action regardless of governments' ideological self-description. For instance, the restrictions of COVID-19 may not begin to lift, even in richer countries, for a considerable period of time. Many government strategies to reduce the spread of COVID-19 involved unprecedented restrictions on personal movement, disrupting social and economic norms and traditional ideologies. This may become more common too as other global challenges, including the climate crisis, require a dilution of political ideology in favour of pragmatic and common approaches to deal with these issues. Nevertheless, although generally well-received in many nations, frustration regarding COVID-19 restrictions was apparent, particularly where right-wing ideologues encouraged public perceptions that COVID-19 responses represented a permanent threat to civil liberties and personal freedoms. It may well be that ideological differences, and therefore the influence of ideology, will persist if only for electoral purposes in nations which share* democratic principles*. Indeed, many have already experienced political upheaval in different ways, as rising populist movements and new forces emerge across the ideological spectrum to challenge traditional parties and leaders. Within authoritarian regimes ideology appears to be more entrenched and continues to shape government decision-making by providing justifications and rationale for government policy being a means of maintaining social order.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
5.			**30**	Candidates can be credited in a number of ways up to **a maximum of 30 marks.** **Credit responses that refer to:** • codified and uncodified constitutions • parliamentary, presidential and authoritarian systems • federal, unitary and devolved systems • bicamarel and unicamarel legislatures • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question.** **Analysis and evaluation** **Response 1** *The UK's constitution is not unwritten. This common misconception stems from the fact that the laws and principles within it are not contained within a single legal document. To describe it more accurately, the UK constitution is uncodified. The UK constitution comprises of conventions such as the office of Prime Minister, treaties, precedents, institutions and Acts of Parliament. There may be some impact on the constitution due to Brexit. Some argue this will lead to a restoring of parliamentary sovereignty and a strengthening of the UK's constitution. However, others argue this may require a more codified constitution which would see the UK lose the flexibility its current set-up possesses.* **This example contains basic analysis of a key aspect with evaluation but lacks detailed contemporary supporting evidence.** **Response 2** *Recent events in British politics stretched the capacity of the UK's constitutional framework significantly and highlighted both weaknesses and strengths. Two key features lie at the heart of the British constitution; one is the centrality of parliament; the other is that key aspects depend on politics, not law. The limitations in the system were demonstrated by the Prime Minister, Boris Johnson, rejecting convention and asking the Queen to prorogue parliament. The prorogation broke with constitutional precedent and at five weeks was the longest prorogation in 90 years. The Prime Minister's move deliberately deprived parliament of the opportunity as well as the right to scrutinise his government, hence demonstrating a major loophole. While MPs have a decisive role in dissolving parliament for a general election, or adjourning for a recess, prorogation lies purely in the executive's hands. Usually, this government control of the agenda is largely unproblematic. However, under a minority government it becomes highly questionable whether ministers, rather than a parliamentary majority, should decide what gets discussed. In fragmented political times with the potential for minority governments to become more frequent, revision of the rules appears an urgent priority to avoid the kind of procedural arguments witnessed over Brexit.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.**

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Question			Max mark	Detailed marking instructions for this question
				Comparison **Response 1** *The rule of law, separation of powers, the royal prerogative and parliamentary sovereignty are the basic tenets of the UK constitution. The UK along with New Zealand and Israel are* amongst a minority of *countries in the world to have an uncodified or unwritten constitution. The main advantage is that these types of constitutions are dynamic, flexible and more amenable to constitutional reform. The UK constitution is often described as a 'living constitution' because it evolves and adapts to reflect changing social attitudes such as the Marriage (Same-Sex Couples) Act 2013.There is also an emerging concept of a new territorial constitution in the UK, where traditional British centralism should include parity between the constituent parts of the UK. This has seen the UK government allow the devolved legislatures to develop their own constitutional existence.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country but lacks evaluation.** **Response 2** *The absence of a written constitution means that the UK does not have a single, written document that has a higher legal status over other laws and rules. Because of this, the UK constitution comprises a number of sources which makes it less accessible, transparent and intelligible. The powers of the executive, legislative and judicial branches are not clearly defined either, which can lead to ambiguity, uncertainty and possible conflict between the three pillars of government. The flexible nature of uncodified constitutions means that they could be subject to multiple interpretations. For example, the opposing interpretations taken by the executive and judiciary regarding the prerogative power to prorogue that is, suspend parliament. The UK Supreme Court is the final court of appeal and recently ruled on the lawfulness of the advice given to the Queen by Prime Minister Boris Johnson to prorogue parliament for a period of five weeks. The UK Supreme Court unanimously held that parliament had not been prorogued and that the Prime Minister's advice to the Queen based on the recommendation of Nikki da Costa, Director of Legislative Affairs at No.10 was 'unlawful, void and of no effect'. Although the US has a clearly defined codified constitution, framework ambiguity also exists. As all 50 states start to reopen their economies, government officials face questions about their response to the COVID-19 pandemic. While a vast majority of debate focuses on the important health consequences resulting from variations in state restrictions, conflicting policies across the country highlight some key constitutional issues that remain unresolved. The COVID-19 pandemic brought increasing attention to America's federalist form of government. The traditional story of federalism recognises that the national government can make policy in some areas, while the states reserve the right to regulate in other areas. However, as the pandemic has highlighted, things are not always clear-cut and constitutional boundaries between state and federal authority are increasingly difficult to ascertain. As a result of political decisions by both state and federal elected officials, today's American government looks different than originally contemplated by the nation's founders. Ambiguities in the US constitutional framework were illuminated by COVID-19. One of the Anti-Federalist critiques of the Constitution was that the presidency was a disguised monarchy that, in collaboration with the Senate, would rule the country tyrannically. The Federalists countered that, combined with separation of*

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Question			Max mark	Detailed marking instructions for this question
				powers, the distribution of authority between the state and national governments would prevent executive power grabs. Despite the differences between the UK and the US codified and uncodified constitutions, and the US more clearly defining the powers of states and branches of government, unprecedented events such as political upheavals or pandemics show that neither adequately define political and legal authority on these situations. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Being uncodified makes the UK's constitution unusual but not unique. Israel, New Zealand, Sweden and Saudi Arabia also have uncodified constitutions. The singularity of the UK's constitution stems not from its uncodified nature, but from both the breadth of its content and the specific parts of the constitution that politicians have chosen to write down (or not) over time. Like other countries with unwritten constitutions, the text of the UK's constitution is found in a large collection of constitutionally relevant statutes. Perhaps as a result of this long, slow accumulation, the topics in those statutes are not what one would expect to find in a modern constitution. The result is the longest and perhaps the most complex constitution in the world. However, several central aspects of the UK's decision-making are still left entirely to convention. Although this constitutional framework contrasts to the codified US approach, in practice decision-making can drift to the executive but lines can be blurred and shifts in power can also transpire blurring accountability in terms of decision-making.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *Recent events in British politics have stretched the capacity of our constitutional framework to their limits. This has highlighted weaknesses but also some less-discussed strengths. The UK is one of very few countries in the world that does not have its constitutional text consolidated into a single document, but it is not the only country. Canada, Israel, New Zealand, Saudi Arabia, and Sweden also have constitutions consisting of multiple texts. That being said, the constitutionally relevant texts in these countries are significantly easier to identify than in the UK. The Canadian constitution was largely consolidated by the 1982 Constitution Act. Israel has a set of Basic Laws that form the basis of its constitution. Saudi Arabia has three royal decrees that establish the basic structure of government. And Sweden has four documents that all possess the status of fundamental law. In each of these countries, there is a concise set of documents that act like a codified constitution and qualify as a constitution. The other exception is New Zealand which, like the UK, has a number of constitutionally relevant statutes. It nonetheless has a Constitution Act 1986 which consolidates the fundamental rules regarding the executive, legislative and judicial branches of government, arguably the most important parts of the constitutional order, into a single document. Thus, even in comparison to other uncodified constitutions, the UK constitution is unique. Unlike other countries, there is no central document or obvious*

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Question			Max mark	Detailed marking instructions for this question
				cluster of documents that make up the UK's written constitution. This lack of a discernible constitutional text (or texts) makes it difficult to understand precisely which topics are addressed by the UK's constitution and exemplifies the benefits of consolidating all of the laws which collectively form the basis of the UK's written constitution. **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
6.			30	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • local, city, state and national governments • devolved administrations and central governments • state governments and central governments • national governments and supranational institutions • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *The commitment of the UK government to avoid further national COVID-19 lockdowns put the UK government at loggerheads with regional and local counterparts and showed the centralising tendencies of Boris Johnson's government. Moves to scrap Public Health England and the appointment of Dido Harding as head of the Test and Trace system, as well as proposals to integrate social care into the NHS, have also been cited as examples of a controlling UK executive.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *Power across the UK ebbs and flows between the UK central government and the devolved administrations, shifting in line with social, political or economic developments. One such area is in relation to constitutional matters. As the United Kingdom is a unitary state and constitutional matters remain reserved to the UK Parliament, constituent countries of Scotland, Wales, and Northern Ireland lack powers to challenge the constitutionality of UK Acts of Parliament which govern their very existence. Inevitably this can cause disputes around legitimacy and which institution has power over what. This was the case after the 2021 Scottish Parliament elections when the SNP returned to power and argued that it now had an electoral mandate to hold a second Scottish Independence Referendum. However, the UK government countered by stating that it was not the time to revisit an issue which had been decided by a 'once in a generation' vote in 2014, particularly as the recovery from COVID-19 remained the national priority. The UK government were also aware that a legitimate, legally binding referendum requires a Section 30 order, that is the section of the Scotland Act that allows Holyrood to pass laws in areas that are normally reserved to Westminster, and Boris Johnson has effectively vetoed any notion that this would be granted while he is Prime Minister. This suggests power lies very much with central government on matters of constitutionality. However, power does travel the other way. Since devolution in 1999 the Scottish Parliament has seen several extensions to its powers. The 2012 Scotland Act and 2015-16 Scotland Acts saw further powers transferred to the Scottish Parliament, with the number of reserved areas decreased. As a consequence of these additional powers Scotland has diverged from the UK on general taxation after higher tax bands were introduced by the SNP led government. Therefore, to state that power has shifted away from local or national governments to a centralised government would be both wrong and an oversimplification of the relationship between the devolved Scottish Parliament and central UK government. Instead, there is a complex relationship where power has*

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Question			Max mark	Detailed marking instructions for this question
				been ceded on matters dictated by the UK government on an incremental basis for political reasons so as to maintain the union. **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *The UK and China are similar in that both operate a unitary state structure with autonomous regional governments but central governments which are ultimately supreme. In the UK, the UK Parliament is sovereign but has devolved certain matters to Scotland, Wales and the Northern Ireland assemblies whilst reserving control over matters including foreign relations and defence, the constitution, immigration and aspects of economic policy. China operates a system of regional autonomy alongside Special Administrative Regions (SARS). In China's SARS, such as Hong Kong, a 'one country, two systems' approach means that in principle socialist policies are not applied which allows SARS a degree of freedom to operate different political systems and policies from mainland China. For instance, Hong Kong has executive, legislative, and independent judicial and adjudicatory powers while the Central Chinese Government retain responsibility for foreign affairs and defence and appoints the chief executives and principal officials of the regions. However, while more power has been devolved to the regions in the UK, particularly Scotland, since 1999, power appears to be being taken back by China, reducing Hong Kong's autonomy which may not be protected by the 1997 agreement which expires by 2047.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Responses to crises often see a huge expansion in the role and powers of the state and central government. As COVID-19 has spread, many governments around the world have sought to tackle the pandemic by broadening their powers and abilities, establishing 'states of emergency', or passing emergency legislation. In the UK, executive dominance has been a longstanding tenet of the political system and has accelerated due to Brexit as this has allowed powers previously held by the EU to be repatriated to the UK. Many fear this will result in the opportunity for the UK government to make a power grab on powers that they argue should go to the devolved governments. Likewise, the COVID-19 pandemic also provided an additional avenue for the extension of power by the UK central government. Emergency powers under The Public Health (Control of Disease) Act 1984 and the Civil Contingencies Act 2004 (CCA) allowed the UK government and the government in Scotland to pass regulations throughout the pandemic which imposed restrictions on the public, lockdowns on three occasions, quarantining of individuals and powers to impose on workers and businesses to abstain from working or trading. Regional lockdowns and economic support also saw central government impose rules on local government and clash with devolved assemblies on strategy and powers. In the fight against COVID-19, the Australian government also enacted measures similar to those imposed by the UK government including the use of smartphone contact-tracing technology, mandatory isolation and the closure of borders and businesses. Under normal circumstances the use of executive power is limited, checked or devolved but in exceptional times of disaster and crisis, the executive*

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Question			Max mark	Detailed marking instructions for this question
				government is able to acquire significant coercive and legislative powers whilst there is a reduction in the degree of scrutiny and accountability. It is therefore relatively accurate to suggest that extra powers have been assumed by central governments. However, in both the UK and Australia these powers were time limited which suggests that powers which flow to central governments in emergencies will be returned or fall away as normality resumes. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Measures taken by Boris Johnson's government, such as the implementation of the furlough scheme and the extension of policing powers to enforce lockdowns at national and now local levels, have led to concern at the extension of central government powers. Although these have been accelerated by the COVID-19 crisis, it is important to trace their origins and nature closely. The relationship between government management of Brexit and the centralisation of power in the executive, from the May government onwards, suggests Brexit implementation was used as a vehicle for government to reassert the power of the political centre. In terms of both the policy-making influence of No. 10 and the size and budget of the civil service in Whitehall, this process took hold and continues to see power drifting away from local levels to the central government.* **This example contains a basic conclusion and provides an overall judgement supported by reasons/evidence.** **Response 2** *The balance of power between central, devolved and local governments matters because where this balance of power lies is also where responsibility and accountability lie. Whilst there has been a flow of power away from Westminster to Scotland on some matters there have been and, with Brexit will continue to be, conflict and tension in this power sharing relationship while the UK government fights to maintain the union in the face of challenges and demands for more powers from an SNP led government in Scotland intent on securing independence. Similar tensions and centralisation of power exists in China where the Chinese central government is asserting greater control over autonomous regions and SARS such as Hong Kong and Macao in an attempt to protect and maintain the integrity of the Chinese socialist state. So, although the pendulum of power swings back and forth, and despite Scottish, UK and Chinese governments talking up localism and regional autonomy, the reality is that central government's natural tendencies are to lean towards increasing their powers and responsibilities. The assumption of emergency powers by these governments in response to recent crises and pandemics supports this assertion and suggests it is highly accurate to suggest that power has indeed swung towards the national level.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Part B

Question			Max mark	Detailed marking instructions for this question
7.			**15**	*Candidates can be credited in several ways up to **a maximum of 15 marks**.* **Credit responses that refer to:** **Online surveys:** • Survey Monkey, Survey Gizmo and Smart Survey are commercially available websites which allow individuals to create and easily disseminate online surveys • online surveys allow for information to be obtained quickly often covering a wide geographical area • online surveys collect more reliable data especially when using closed questions in comparison to qualitative methods • images, audio and video can be used to enrich questions or provide clarity to instructions, thus increasing the validity and reliability of results • participants can often take an online survey at a time and place that is convenient to them which can increase the response rate • the researcher is unlikely to be present (unless video conferencing technology or a webcam is used) which allows for more objective responses from the participant • sampling bias and expensive software can make some online surveys both unreliable and cost prohibitive. **Focus groups:** • research methods such as, focus groups offer researchers the opportunity to gather qualitative data that is often insightful with a high degree of validity • often captures the views and emotions of participants which can allow the researcher to better plan future research • better able to explain the 'why' and 'how' of participants • can often introduce more researcher bias in comparison to quantitative research methods. **Ethical issues including:** • consent • privacy • harm • deception. *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Online surveys are a useful method for researching the role of social media in shaping public opinion as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research.* **This example contains analysis of a relevant issue.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *Online surveys are a useful method for researching the role of social media in shaping public opinion as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey use online surveys and political polls to analyse campaign issues, candidate positions, and public opinion during election years.* **This example contains analysis of a relevant point and supporting evidence.** **Response 3** *Online surveys are a useful method for researching the role of social media in shaping public opinion as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey use online surveys and political polls to analyse campaign issues, candidate positions, and public opinion during election years. However, quick online surveys containing closed questions have drawbacks and can only partially explain the level of influence of social media on public opinion. For example, YouGov has an online survey tracker which tracks government approval weekly. Participants may get fed up of doing this because of the frequency and answer quickly without consideration of the questions. Online surveys are also unlikely to fully explain all the factors that influence public opinion due to the closed nature of questions asked.* **This example contains balanced analysis of a relevant point and supporting evidence and explanations which address the specified scenario.** **Response 4** *Online surveys are a useful method for researching the role of social media in shaping public opinion as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey use online surveys and political polls to analyse campaign issues, candidate positions, and public opinion during election years. However, quick online surveys containing closed questions have drawbacks and can only partially explain the level of influence of social media on public opinion. For example, YouGov has an online survey tracker which tracks government approval weekly. Participants may get fed up of doing this because of the frequency and answer quickly without consideration of the questions. Online surveys are unlikely to fully explain all the factors that influence public opinion due to the closed nature of questions asked.* *Qualitative research methods, such as interviews or focus groups, could however gather valid data that more fully captures all the variables that help shape public opinion. Were focus groups to be used to explain the influence of social media for example, such qualitative data could shed light on why and how the public is consuming more and more news through social media channels rather than more traditional forms of media such as newspapers and television. With a researcher fostering discussion among focus group members different topics can be targeted providing an in-depth critique of, for example, social media consumption.*

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Question			Max mark	Detailed marking instructions for this question
				However, focus groups can be expensive, time consuming and, for an inexperienced researcher, focus groups can go off track or be dominated by one or two individuals, thus making results less valid and reliable. **This example contains balanced analysis of a relevant point, supporting evidence and explanations which address the specified scenario and analysis of the opposing method.** **Response 5** *Online surveys are a useful method for researching the role of social media in shaping public opinion as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey use online surveys and political polls to analyse campaign issues, candidate positions, and public opinion during election years. However, quick online surveys containing closed questions have drawbacks and can only partially explain the level of influence of social media on public opinion. Online surveys are unlikely to fully explain all the factors that influence public opinion due to the closed nature of questions asked. For example, YouGov has an online survey tracker which tracks government approval weekly. Participants may get fed up of doing this because of the frequency and answer quickly without consideration of the questions. While collecting and storing data from both online surveys and focus groups a researcher would have to adhere to the British Sociological Association's statement of ethical practice. Any researcher conducting a focus group for example would also need to ensure that participants do not record the comments or images of other participants. Therefore, it is the researcher's duty to communicate to all participants what data will be collected and how long it will be stored to ensure data protection standards are adhered to.* **This example contains balanced analysis of a relevant point, supporting evidence and explanations which address the specified scenario, analysis of the opposing method and consideration of ethical issues related to one method.** **Conclusions** **Response 6** *Online surveys are a more effective method for gathering data on the role of social media in shaping on public opinion because many online surveys are inexpensive, quick to create, and large sampling frames can be incorporated into the research.* **This concluding remark summaries key points — 1 mark** **Response 7** *Online surveys are a more effective method for gathering data on the influence of social media in shaping public opinion. This is because many online surveys are inexpensive, quick to create, and large sampling frames can be incorporated into the research. Online surveys also tend to be quantitative allowing for comparisons to be made and results to be analysed quickly. Therefore, findings from the group studied in the sample can be applied to make generalisations about the wider population.* **This concluding remark clearly shows which method is preferred, supported with reasons — 2 marks**

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Question			Max mark	Detailed marking instructions for this question
				Response 8 *Online surveys are a more effective method for gathering data on the role of social media in shaping public opinion. This is because many online surveys are inexpensive, quick to create, and large sampling frames can be incorporated into the research. Online surveys also tend to be quantitative allowing for comparisons to be made and results to be analysed quickly. Therefore, findings from the group studied in the sample can be applied to make generalisations about the wider population. Although focus groups can produce more qualitative data, it is difficult for this research method to enable the researcher to draw generalisations about the wider population.* **This concluding remark clearly shows which method is preferred, supported with reasons for rejecting the other method — 3 marks**

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Question			Max mark	Detailed marking instructions for this question
8.			15	*Candidates can be credited in several ways up to **a maximum of 15 marks**.* **Credit responses that refer to:** **Arguments that the source is valid and/or reliable:** • from Gallup Polling company which has been polling the public in the United States and around the world since 1935 • carried out by trained researchers and statisticians following experienced and transparent sampling, interview and polling techniques • contact information for the chief methodologist are included should researchers have further questions about methodology and/or blog • robust sampling procedure in place to ensure valid and reliable data is collected • survey of over 1,000 adults suggesting adequate sample size to ensure validity and reliability of data • both face-to-face interviews and telephone interviews are used in polling allowing researchers to clarify questions • 'quality control procedures' used to ensure validity and reliability • source contains quantitative and qualitative data suggesting increased validity • graphs allow for uninterrupted annual comparisons over a 13-year period • 'standard set of core questions used' in survey which improves survey reliability • the survey has plus/minus margin of error of 3%. *Award marks for any other relevant points.* **Arguments that the source's validity and/or reliability are questionable:** • one person's view in a blog suggesting a lack of reliability, possible bias • 'in some regions supplemental questions are asked' suggesting some data may not be reliable when compared • further information is required on use of interviews to ensure reliability • telephone interviews cannot authenticate identity of respondents — may be completed by others • information is omitted from the methodology of the World Poll. For example, no information or data related to when the polling takes place is included — only the year is given. • lack of information on the Kish Grid method. *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Source A has been produced by Gallup Polling Company, a worldwide polling company with several decades of experience polling the public. This could be one reason for it to be considered trustworthy as the author of the blog is drawing conclusions from a nationwide poll of over 1,000 adults carried out by trained researchers and statisticians. Primary Sampling Units are stratified by population suggesting a robust process for determining which households will be surveyed.* **This example contains analysis of one key aspect related to the trustworthiness of the source.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *Source A has been produced by Gallup Polling Company, a worldwide polling company with several decades of experience polling the public. This could be one reason for it to be considered trustworthy as the author of the blog is drawing conclusions from a nationwide poll of over 1,000 adults carried out by trained researchers and statisticians. The 'satisfaction' poll is carried out annually allowing for yearly comparisons to be made which increases the reliability of the data. Primary Sampling Units are stratified by population suggesting a robust process for determining which households will be surveyed. Because the blog is written using valid and reliable data from the survey, readers of the blog can place a high degree of trust in its contents.* **This example contains analysis, supported by evidence, of one key aspect related to the trustworthiness of the source.** **Response 3** *Source A has been produced by Gallup Polling Company, a worldwide polling company with several decades of experience polling the public. This could be one reason for it to be considered trustworthy as the author of the blog is drawing conclusions from a nationwide poll of over 1,000 adults carried out by trained researchers and statisticians. The 'satisfaction' poll is carried out annually allowing for yearly comparisons to be made which increases the reliability of the data. Primary Sampling Units are stratified by population suggesting a robust process for determining which households will be surveyed. Because the blog is written using valid and reliable data from the survey, readers of the blog can place a high degree of trust in its contents.* *However, Source A is a blog and only the view of one person. As such, the blog will come with a degree of bias depending on the author's age, nationality, gender, race, socio-economic status and political beliefs. In addition, while the core survey questions asked were identical some survey participants were asked supplemental questions depending on where they lived. This therefore would impact the reliability of some of the data collected. Lack of information about when the survey was administered also suggests that events could very well have influenced how respondents answered.* **This example contains analysis and evaluation of strengths and weaknesses of two key aspects of the source, supported by knowledge of social science research.** **Response 4** *Source A has been produced by Gallup Polling Company, a worldwide polling company with several decades of experience polling the public. This could be one reason for it to be considered trustworthy as the author of the blog is drawing conclusions from a nationwide poll of over 1,000 adults carried out by trained researchers and statisticians. The 'satisfaction' poll is carried out annually allowing for yearly comparisons to be made which increases the reliability of the data. Primary Sampling Units are stratified by population suggesting a robust process for determining which households will be surveyed. Because the blog is written using valid and reliable data from the survey, readers of the blog can place a high degree of trust in its contents.*

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Question			Max mark	Detailed marking instructions for this question
				However, Source A is a blog and only the view of one person. As such, the blog will come with a degree of bias depending on the author's age, nationality, gender, race, socio-economic status and political beliefs. In addition, while the core survey questions asked were identical some survey participants were asked supplemental questions depending on where they lived. This therefore would impact the reliability of some of the data collected. Lack of information about when the survey was administered also suggests that events could very well have influenced how respondents answered. *To increase the trustworthiness of the source the core survey questions could be included along with the closed question response options. Examining the wording of questions can ensure that respondents were not led to answer in a certain way. Removing any bias and ensuring that the meaning of words is clear results in the collection of more valid and reliable data.* **This example contains analysis and evaluation of a key aspect of the source supported by knowledge and social science research and reference to additional or alternative approaches which increase the trustworthiness of the source.** **Conclusions** **Response 5** *Overall, Source A is a trustworthy source as it is from Gallup Polling Company and based on an annual 'satisfaction' survey conducted by experienced, trained researchers and statisticians.* **This example contains a simple summary of key points — 1 mark.** **Response 6** *Despite some inconsistencies associated with the survey, such as the addition of supplemental questions in some regions, the survey data can be considered valid and reliable. The three-stage sampling process ensures that data can be generalised, and conclusions can be made with a large degree of certainty about the level of 'satisfaction' on certain topics that Britons over the age of 15 have each year.* **This example contains a clear overall judgement about the trustworthiness of the source supported by reasons/evidence — 2 marks.** **Response 7** *Despite some inconsistencies associated with the survey, such as the addition of supplemental questions in some regions, the survey data can be considered valid and reliable. The three-stage sampling process ensures that data can be generalised, and conclusions can be made with a large degree of certainty about the level of 'satisfaction' on certain topics that Britons over the age of 15 have each year. Although the source is a blog representing the views of the author, because the blog was published on the Gallup Polling website it will have been reviewed by an editor or peer reviewed further increasing the validity and reliability of its contents. The Gallup Polling Company is an internationally recognised polling company with decades of experiences so can therefore be trusted in determining how satisfied British voters are in the run-up to an election.* **This example contains a clear overall judgement about the trustworthiness of the source supported by analysis and evaluation – 3 marks.**

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Question			Max mark	Detailed marking instructions for this question
9.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • judicial systems • the rule of law and values underpinning judicial frameworks • relations between the judiciary, other branches of government and political institutions • judicial review procedures • opportunities for, and effectiveness of, challenges to the rule of law. • judicial independence and the appointment processes • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *The concept of judicial independence is one of the key factors that distinguishes the system of government in Scotland and the UK from others around the world. By upholding the rule of law the judiciary protects citizens from the excesses of government. The Constitutional Reform Act (2004) aided this concept by enshrining in law that judges are chosen by an independent commission, are given life tenure and cannot be sacked unless they break the law, thus preventing their removal by the executive, legislative or other political institutions. As judges pay is now decided by an independent pay review body according to this Act, there is also no undue interference or influence from government ministers with regards to this. A final aspect of the Act that supported the concept of judicial independence was the separation of the Supreme Court from the government and the legislature unlike the previous Law Lords. This Act enshrined the principle of judicial independence in law and safeguarded against political interference in the courts and criminal justice system.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation**. **Response 2** *The independence of the Lord Advocate in Scotland, chief legal officer in Scotland, has been called into question in recent years, particularly in the aftermath of parliamentary committee investigations into the trial and eventual acquittal of Alex Salmond relating to 14 charges, mostly of sexual assault. This is due to the dual role the Lord Advocate occupies as head of the Crown Office and Procurator Fiscal Service, and as minister and principal legal advisor to the Scottish Government — in contrast to the English system where the Director of Public Prosecutions is a legal position entirely independent from government. Criticism and questioning of the Lord Advocate's position stems from the fact that in high criminal cases where the Scottish Government are involved there is a conflict of interest. Alex Salmond criticised the Crown Office and then Lord Advocate, Lord Wolffe QC, arguing that they had been open to political pressure to redact key information from his submissions to the harassment committee into the handling of his case by government ministers. This was denied by the Lord Advocate who responded that the censure advice was to ensure*

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Question			Max mark	Detailed marking instructions for this question
				compliance with a court order to protect the identity of complainants against Mr Salmond. Other controversies about the role of the Lord Advocate have involved their potential role in defending Scottish Government political decisions in the UK Supreme Court relating to Brexit and any future independence referendum, again possible areas where a conflict of interest may arise and accusations of being open to political interference could come from. According to the Scotsman newspaper a survey of lawyers found that 81% of those questioned wished to see reform, with just 12% in favour of the status quo and only 7% choosing to maintain the dual role. The significant majority of support for reform of the position of Lord Advocate and the recent political controversies about the dual roles and conflicts of interest suggest that judicial independence in Scotland is not as clear-cut as it is in other legal systems. Although this has not hampered the effectiveness of the criminal justice system in Scotland, since devolution in 1999 legal cases involving the Scottish Government have called into question the independence of the legal profession and might only be resolved by separating the political and legal functions of the role of Lord Advocate. **This example contains detailed analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *Life-time tenure for legal and judicial appointments is contentious with some arguing that it reinforces legal and judicial independence whilst others argue that it prevents renewal and good law-making and reinforces politicisation of the legal/justice system. In Scotland for example, although the Lord Advocate, the chief legal position in the country, has no limit on their tenure they can resign at any time. With recent appointees the precedent has usually been that Lord Advocate's resignations coincided with Scottish parliamentary election cycles. Lord Wolffe QC for example resigned in 2021 after five years in the post. In the UK and US, Supreme Court justices have tenure for lifetime as long as they are of "good behaviour". Some critics of this have argued that with increased life expectancy there is a need to place limits on the terms of judicial appointments of around 15 years to reduce the political importance of the appointment process and avoid justices serving thirty or more years where they are likely to become more entrenched in their legal views.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Appointments to the UK Supreme Court are impartial and based on competency and experience, rather than popular consent. Candidates apply for a position of Supreme Court judge rather than receiving a nomination from the executive. A committee comprising representatives from the judiciary of England and Wales, Scotland, and Northern Ireland make the appointment. Although the Lord Chancellor, a member of the government, has the power to veto the selection committee's choice, this power has never been used. Whereas in the US, Supreme Court Justice's appointments are based on popular consent and open to politicisation. This was illustrated by the nomination and confirmation of Brett Kavanaugh*

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				to the Supreme Court in 2018. After a delay to the process to allow and FBI investigation into allegations of historic sexual assault against Kavanaugh, the Republican Party used their political power in the senate to approve Kavanaugh's nomination by 50–48 votes and endorse a lifetime seat on the court for him. Arguably the US process reduces the independence of the US Supreme Court and its function as an objective interpreter of the law and constitution. In comparison the appointment procedure of the UK judicial system is better suited to meeting the principles of judicial independence and therefore supporting the principles of interpreting the law in a form free from bias and political interference. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Judicial independence is a cornerstone of any effective legal system. Judges and the judiciary must be free of any improper influence when carrying out their duties, especially from pressure by the executive or the legislature or any particular pressure groups or the media. As the role of government has increased the responsibility of the judiciary to protect citizens against unlawful acts by government has too. As a result, the judiciary needs to be independent of government.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *Impartiality and independence of the courts is a key feature which enhances the reputation for fairness, impartiality and incorruptibility of any legal system. In the UK and the US this is supported by the fact that judges occupy their positions due to their good behaviour and not at the pleasure of the executive which is not the case in other jurisdictions such as Venezuela which has the lowest overall rating according to the WJP Rule of Law index. However, there are other aspects which are equally necessary for an effective legal system including access to justice for citizens, constraints on government powers, transparency, respect for human rights judicial review and opportunities to challenge the law. Collectively these are the key features which support and underpin the rule of law in any jurisdiction. By these measures the UK and the US can be argued to be highly effective judicial systems, scoring highly on the rule of law index. However, they still lag far behind Denmark, Norway and Finland.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
10.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • human rights and civil liberties • human rights and constitutional arrangements • impact of human rights legislation • challenges to human rights and civil liberties • effectiveness of the criminal justice system in protecting human rights and civil liberties • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *In May 2018, the UK and Scottish Governments, in light of Brexit, adopted General Data Protection Regulation (GDPR) designed to provide safeguards fit for the modern digital age. The main aim of this is to ensure those who process personal data are transparent and protect the individual's right to privacy by gaining informed consent for its use and storage and making it easier for individuals to find out what data an organisation holds on them. GDPR legislation also makes it mandatory to report data security breaches and introduced more expensive fines for breaches — up from a maximum £500,000 to about £17.5m or 4% of global turnover, whichever is the greater. It is intended that this tightening of regulation and increased penalties will protect human rights, specifically the entitlement to the right to privacy which forms part of Article 8 of the Human Rights Act.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence, but lacks evaluation**. **Response 2** *Brexit has thrown up concerns over the powers it allows the UK government that may represent a threat to parliament's sovereignty, human rights, and civil liberties. Under the EU Withdrawal Act (2018), the UK government has the power to adapt and remove laws during the transition period of leaving the EU. Under these arrangement ministers can use statutory instruments, or 'Henry VIII' powers, to change laws and rule by decree. Critics argue that these powers are too vague and wide-ranging and reduce scrutiny by parliament and the courts. One such critical group, The Good Law Project, challenged the UK government's use of Henry VIII powers to remove EU state aid rules from UK Law and also warned that without proper limiting of the use of such powers, then other EU rules in areas such as employment rights could be removed from UK law without MPs having a say or a vote. The UK government counters that the use of statutory instruments, or 'Henry VIII' powers, are necessary to deal with the volume of legislation required as a result of withdrawing from the EU and that they have no intention of watering down citizen's rights, workers' rights, or civil liberties. Furthermore, there are 'sunset clauses' or expiry dates included in legislation which provide parliament the chance to decide on its merits again after a fixed period. However, critics counter that 'Henry VIII' powers allow ministers to extend these clauses indefinitely.*

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Question			Max mark	Detailed marking instructions for this question
				It is therefore quite clear that Brexit and the opportunity for the UK to diverge from the European Law and the ECHR could potentially allow significant changes to human rights and civil liberties as they currently stand without parliamentary scrutiny or judicial review. Thus far, this has not occurred but that is not to say that this will remain the case. **This example contains detailed analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *The Universal Declaration of Human Rights (UDHR) and International Covenant on Civil and Political Rights (ICCPR), to which the UK and China are signatories, protects human rights and political freedoms including freedom of religion or belief, and freedom of expression, as well as the rights of persons belonging to ethnic or national minorities. According to the Human Freedom Index, which measures the state of human freedom in the world based on personal, civil, and economic freedoms, in 2019 the UK was the 14th most free country in the world. In contrast, China was ranked 126th out of 162 countries on the same index. This low-ranking is a result of civil and political rights erosions, detention and trials of human rights lawyers and defenders, lack of due process and judicial transparency and detention of over one million Uighur people and other minorities who have been held in re-education detention camps in Xinjiang province.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Amnesty International has criticised the UK, the US and Russia in relation to issues regarding gender and women's rights. In the UK, Amnesty International won a legal challenge at Belfast High Court which found that Northern Ireland's abortion law was incompatible with the UK's human rights obligations under the ECHR. In response, legislation came into force decriminalising abortion in Northern Ireland and enabling access to abortion for women. Meanwhile in the US Federal and state governments have increased efforts to curtail sexual and reproductive rights by seeking to criminalise abortion and limiting access to reproductive health services. The US under the Trump administration also attempted to influence women's global rights to access abortion services by introducing a Global Gag Rule prohibiting US international aid to groups which offer counselling, advocate for legal reform, provide abortions, or even provide referrals. Russia has also been highly criticised for its failure to protect women's rights, particularly in the sphere of violence against women. In the case of 'Volvodina V Russia' (2019), the European Court of Human Rights criticised Russia's failure to adopt legislation to combat domestic violence and described the existing provisions as inadequate to provide sufficient protection for its victims. This would suggest that in relation to women's rights all three countries could improve legislation which protects women's rights over their own bodies and protection from violence and domestic abuse. However, the UK would appear to be more reactive to these criticisms and willing to amend legislation to meet international obligations.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.**

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Question			Max mark	Detailed marking instructions for this question
				Conclusions **Response 1** *The protection of human rights and civil liberties varies from country to country, dependant on their respect for the rule of law and the checks and balances placed on upon the government and the strength of the courts. The UK's adherence to international agreements, including the ECHR, is enshrined in UK and Scots law by the 1998 Human Rights and Scotland Acts. As a consequence, the UK and Scottish Governments must protect and abide by human rights. Where human rights have been breached, cases can be taken to UK courts where they can be challenged and overturned if found to be incompatible with rights identified in the ECHR. This suggests that human rights and civil liberties are adequately protected.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *The extent to which human rights and civil liberties are protected depends on multiple factors including countries' constitutional arrangements, adherence to human rights legislation and the ability of their criminal justice systems to allow challenges to infringements of human rights. Brexit appears to have diluted the UK's commitment to the ECHR and suggests there may be significant divergence in the future. The Scottish Government on the other hand has built on its commitment to incorporate the UN Convention on the Rights of the Child, promising to bring forward legislation to incorporate UN treaties into Scots Law. The US, whilst enshrining civil rights within its laws and constitution and protecting these by judicial review by SCOTUS, appears to be acting in a similar manner to the UK in retreating from an international human rights system, with its withdrawal from the UN Human Rights Council and International Criminal Court. Quite clearly therefore, some countries' record and embracing of human rights and civil liberties is better than others.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
11.			30	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • warrior gene • low resting heart rate • serotonin or testosterone levels • psychopathy • brain development studies • maternal deprivation • subcultural theory • social learning theory • delinquent theory • labelling theory • neo-Marxist theory • right-realism • left-realism • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Physiological theories of crime which focus on genetics suggest that there are genes which are linked to criminality and criminal behaviour. Studies found that the so-called 'warrior gene' which is associated with an inclination to violence was linked to 5-10% of all violent crime in Finland. However, genetic risk is not a sufficient predictor of criminality as the majority of carriers of the warrior gene do not exhibit violent or criminal behaviour. This is due to the fact that they are able to control and regulate their behaviour because of the environment in which they have been brought up which combats the risk of triggering violent responses.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *One aspect of psychological theories of crime relates to behavioural theory and social learning. Bandura suggested that individuals are not born with an innate predilection towards crime but instead learn violent and criminal behaviour where that behaviour is exhibited around them, either within the family, local environment, or the media. The means by which individuals learn to engage in crime can then come from reinforcement, beliefs or modelling of behaviour. One high risk group are those with learning disabilities which makes them more susceptible to negative behaviours, anxiety, depression, low self-esteem and risk of committing crime. According to a 2016 report, a disproportionately higher number of people with learning disabilities are in prison in England and Wales. Figures show that around 7% of those in the criminal justice system have learning disabilities compared to 2% of the general population. This is reinforced further by evidence from a Swedish study of 25,000 people that found those with ADHD were more likely to commit crime than adults without the condition. However, a criticism levelled at psychological theories is that they place too much dependence on the impact of nurture and fail to consider the genetic links which may be at play. For instance, the Swedish study also found that medication of those with ADHD lead to a*

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Question			Max mark	Detailed marking instructions for this question
				reduction in a variety of crimes from petty crime to violent crime and, in some cases, by as much as 30-40%. Therefore, while behavioural theories explain why environmental factors may lead to crime, they ignore the influence the biological factors may play. This suggests nurture-orientated theories of crime are limited and require combining with scientific based approaches to convincingly explain criminality. **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *New right theorists such as Charles Murray developed the idea of a criminal underclass, comprised particularly of young males from single-parent backgrounds, and argued this was created by over-generous welfarism which encouraged jobless, dependency and criminality. In the UK, according to Bromley Briefings data, 13% of the prison population have never had a job. Similarly, in the US one third of men without any earnings are either in prison or unemployed ex-prisoners.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Marxist theories of crime argue that capitalist societies are inherently criminogenic due to the fact they encourage consumption, individualism, inequality, and criminal justice systems that adversely punish the poorest in society and protect the interests of the wealthiest who control and dominate societies' institutions and values. An illustration of this can be seen in the over-representation of the lower classes and ethnic minorities at every stage of the criminal justice system across several western capitalist democracies. An LSE study found that in London people from the highest socio-economic class were three times more likely to be let off with a caution for drug offences compared to people who were unemployed. Similarly, in France, cannabis prohibition has disproportionately punished the Black, Muslim population who constitute less than 10% of France's population. Data suggests that one in six prisoners in France are Arab Muslim men convicted of the use, possession or selling of cannabis. Further evidence of this is also apparent in the US where research shows prosecutors are twice as likely to pursue a mandatory minimum sentence for Black people as for White people charged with the same offence. Marxist explanations of the criminal justice system would therefore appear to explain the structural reasons for inequalities in crime with evidence across several capitalist societies supporting this. However, critics of Marxist theory would counter that it is deterministic and sees the behaviour of individuals as largely governed by external forces and therefore fails to consider the rational choices and free will that individuals exercise when deciding to commit crimes. Following the Marxist line of thought would also suggest that it is primarily capitalist societies that experience higher instances of crime which is patently untrue as can be seen by Switzerland, which with a crime rate index of 21.8, is amongst the lowest in the world. Overall, Marxist theories of crime would appear to only explain structural causes of crime well when applied to capitalist economies with significant degrees of socio-economic inequality.*

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Question			Max mark	Detailed marking instructions for this question
				However, Marxist thoughts most significant failing is its inability to offer any significant explanation of individual motivations when it comes to committing crime. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *While there are many theories of crime and all explain some facet of crime to a degree, there is no singular, general theory of crime which can adequately explain the motivations of all crimes. Rather than being explained by one singular physiological, psychological, or sociological theory, crime is motivated by a combination of the individual's nature and the environment and upbringing they have experienced. Therefore, there is overlap between theories which, when combined, offer a fuller explanation of crime rather than the partial explanation that they offer on their own.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *As theories of crime are often reactive to developments within society, they can only ever offer a partial explanation of what motivates crime in contemporary society. Sociological theories give us an understanding of why social divisions and detachment can cause crime. Psychological theories of crime provide insight into how factors such as inadequate socialisation and negative childhood experiences can result in individuals' criminal predispositions. While biological theories provide explanations of deterministic factors that explain criminal actions and how they are often out with the control of the individual. However, as society, science and technology has progressed, so too has the ability to understand what motivates crime and the criminal. Increasingly there is a realisation that the point where social, psychological, and biological explanations crossover is where the fullest understanding of crime occurs.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
12.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** Impact of crime on victims: • physical impact • financial, emotional and social costs • psychological and/or mental health impact • stigma • social exclusion • crime-specific effects. Impact of crime on perpetrators: • loss of liberty • psychological and/or mental health impact • financial, emotional and social costs • stigma • social exclusion • crime-specific consequences. Impact of crime on families: • financial, emotional and social costs • deepening disadvantage • stigma • psychological and/or mental health costs • impact on children. Impact on wider society: • social cohesion • population reduction and/or victimisation avoidance • community empowerment Costs of crime including: • victim costs • costs of criminal justice • costs of repairing criminal damage • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question:** **Analysis and evaluation** **Response 1** *Violent crime in Scotland is common and accounted for around 34% of all crime in 2020. Victims of violent crime suffer a variety of effects including physical injury and suffering and, in some cases, mental and psychological harm. However, in 73% of cases of violent crime, the overwhelming majority, there is no injury or only negligible injury to victims. In fact, only 6% of violent crime was classed as 'serious assault', suggesting only a very small minority suffer any long-term physical or emotional damage from crime.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *The economic impact of crime is calculable and measurable to an extent and shows a significant financial burden being borne by the economy and wider society. These costs are a result of the expenditure outlaid in anticipating crime, policing crime, dealing with the consequences of crime, and processing criminal activity via the criminal justice system. Anticipating crime creates cost due to the crime prevention measures businesses and individuals undertake to combat and detect crime, such as security systems and burglar alarms whilst replacing damaged and stolen property and compensating businesses and citizens who are the victims of crime costs in terms of insurance premiums and insurance pay-outs. According to a 2018 UK Home Office report the combined cost of crimes against the individual in England and Wales were estimated to be £50 billion while the costs of crimes against businesses were estimated to be £9 billion. This suggests the economic costs of crime start prior to any crime or creation of a 'victim' and only continue afterwards — notwithstanding the physical, social, or emotional cost of crime to individuals or businesses. However, the financial costs of crime do correspond to the severity of the crime rather than the volume of a type of crime. For instance, violent crime makes up most of the total costs of individual crime — almost three quarters — but represents a minority of the number of crimes. This is due to the physical and emotional costs to victims of violent offences which means the costs are higher where the crime results in emotional injuries, such as rape and violence with injury. Similarly, crimes against business have higher costs for robbery and burglary compared to theft, despite theft constituting the majority of crime businesses experience. All of this suggests that crime affects both individuals and businesses but that the greater collective financial burden is on individual victims. Furthermore, the costs, emotionally and physically, of the crimes appears to correlate with those crimes which have the largest economic cost. That is, homicide, violent crime and, in the case of businesses, burglary and robbery.* **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *Victims of sexual assault and rape are often damaged physically and psychologically by their ordeal but also suffer further from shame, social stigma and sometimes from further violence they experience, particularly within patriarchal societies. For example, the Scottish Criminal Justice Survey (SCJS) found that 3% of the population experience serious sexual assault and that despite an increase in the reporting of crimes such as rape, there is still a significant problem of under reporting in Scotland (and the UK) with less than a fifth of sexual assault victims reporting the incident to the police. This under-reporting is a consequence of varied factors such as societal attitudes, personal reasons of victims, rape myths and the victim-blaming that often goes on. A similar but larger-scale problem exists in many South Asian societies such as Bangladesh. In many cases this a consequence of laws that allow marital rape and the discriminatory attitudes and victim-blaming amongst legal officials which blocks victims seeking justice.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *An additional consequence of crime other than that to the victim is the economic cost paid for by society to lock up and imprison offenders. A combination of staffing, infrastructure and security costs means prison is a costly and debatably inefficient way to deal with crime and represents a sizeable tax burden to the general public. For instance, the UK spent approximately £5.6 billion on its prison system in 2020/21 which according to the Ministry of Justice equates to £44,650 per place. Similarly, in the US the Bureau of Justice (BoJ) estimates that prisons cost taxpayers around $80 billion with states paying anywhere between $15,000 to $30,000 per place. Alternative sources state the official figures are a gross underestimation of the hidden costs of the penal system in the US which they estimate to be as much as $100 billion more than that stated in BoJ estimates, with much of the extra costs borne by the families of offenders. These are clearly substantial sums of money which require funding and add to the tax burden of citizens in both countries. However, prisons are criticised as costly waste of money and an ineffective method of punishing offenders and tackling reoffending. A Manchester University study comparing prisons to alternatives to custody suggested that alternative interventions would save the UK between £19,000 and £88,000 per offender. A 2016 study in the US by the Brennan Centre for Justice reached similar conclusions and suggested that by ending prison sentences for some crimes and shortening them for others not only would it reduce the numbers imprisoned but that it would save $18 billion whilst having almost no negative effect on public safety. Clearly, the evidence shows that in both the UK and US there is an economic cost to wider society beyond the physical, psychological or economic damage done to victims and that much of this cost is unnecessary and could be reduced by increased use of alternatives to custody.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Crime is a part of every society. Its costs and effects affect almost everyone to some degree. These costs and impacts vary and affect victims, perpetrators, families and wider society both socially and economically. Socially, crime can isolate individuals and communities. Economically, crime can lead to medical costs, property loss or damage or even loss of income. However, while some of the impacts of crime are short-term, others can last a lifetime dependant on the type of crime and the psychological damage it causes.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *Crime is a part of every society and damages not only victims, but the perpetrators, families and wider society. The extent of damage is also dependant on the type and nature of the crime committed. For instance, the extent to which a crime is a localised incident or whether it has wider ramifications for society and evolves into a form of moral panic, such as that that occurred around paedophilia in the UK in recent years, also determines the extent of damage that a crime can do. The damage and costs can also be affected by a society's approach to crime and the attitudes to crime that exist within that society. In socially cohesive communities and societies, such as Norway and Japan, the rates of crime are lower and the risk of victimhood is lower whereas this risk is higher in more economically divisive societies such as the UK and the US, and especially higher in developing countries such as Venezuela which has the highest rates of crime anywhere in the world. Nevertheless, despite debates about who is damaged and by how much, it can still be argued, as it is by functionalists, that crime has a positive role to play in society by shaping the regulation of behaviours, building social bonds through collective responses to crime and by helping shape or reform laws in response to changing and developing societal attitudes and values.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
13.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • definitions and key features of theories of punishment, including rehabilitation, denunciation, deterrence, incapacitation and retributivism • the work and/or ideas of theorists including Beccaria, Bentham, Durkheim, Hobbes, Marx, Foucault, Von Hirsch, Garland or any other relevant theorists • critical evaluation of contemporary approaches to the punishment of crime in custodial and non-custodial settings • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Penal systems that adhere to rehabilitative ideals have started to shift away from issuing prison sentences for less serious, non-violent crimes. For instance, since the Scottish Parliament passed a Presumption Against Short Periods of Imprisonment (PASS) Order in 2019 the presumption against short sentences in Scotland has been extended from three months or less to twelve months or less. The purpose of PASS is to encourage greater use of community-based sanctions as an alternative to imposing short-term prison sentences. Furthermore, evidence shows that people released from a short-term prison sentence are twice as likely to be reconvicted as individuals serving a Community Payback Order.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *In England and Wales there is still a tendency for the law and criminal justice to embrace notions of retribution rather than rehabilitation. For example, the UK Police, Crime Sentences and Courts Bill (2021) has proposed, amongst other things, allowing judges to give whole life orders, life imprisonment with no possibility of parole for the premeditated murder of a child, life sentences for drivers who kill behind the wheel, and increasing the maximum sentence from three months to ten years for criminal damage to a memorial. This is more in keeping with the retributive ideas of Von Hirsch's 'just desserts' theory where punishment is determined by past behaviour and proportionate to the crimes committed, unlike rehabilitation which is more concerned with tackling future crimes and reducing recidivism. The general public would appear to support this approach with a 2019 YouGov poll showing a significant majority of the UK public, 70%, felt punishments were not harsh enough. Nevertheless, critics of retributive sentencing approaches argue that punishing criminals just because they have acted inappropriately does not address the underlying issues that may have led to the crimes in the first place and only continues the cycle of crime unabated. Figures from the Prison Reform Trust appear to support this and show 47% of adults are reconvicted within one year of being released from prison.*

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Question			Max mark	Detailed marking instructions for this question
				Clearly retribution remains a major feature of responses to crime in England and Wales despite evidence that this approach has limited success in tackling crime and its underlying causes. This suggest populism, public opinion and political expediency are bigger drivers of responses to crime than empirical evidence of what is successful. **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *The policy of mass incarceration in recent decades in both the UK and the US would suggest that retributive deterrence was the main influence on penal policy. Although incarceration in the UK has not been on the scale of the US there was a similar growth in the prison population since the 1980s due to 'tough on crime' policies pursued by governments in both countries. In that period the UK prison population, like in the US, doubled and today remains fairly high at a count of around 83,000 or 138 per 100,000. Meanwhile, although the US prison population count has dropped slightly in recent years, much as the UK's has, the count still remains high at over 2 million or 639 per 100,000. These incarceration figures and patterns suggest that rehabilitation has not been the main influence in penal responses to crime in either country. Nevertheless, the recent drops in prison populations, perhaps driven by soaring economic costs, have seen more engagement with alternatives to custody in both countries.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *With technological developments responses to crime have evolved and greater focus placed on crime prevention measures and the ideas of deterrence and denunciation. Closed circuit television (CCTV) has evolved and now acts as a formal form of surveillance, monitoring and recording public behaviours and forming crucial evidence in criminal proceedings. For the theorist and philosopher Michel Foucault this development, coupled with the monitoring of electronic communication in the digital age, represents an application of Bentham's panopticon, a prison which allowed prisoners to be seen but not to see, to society. As a result, citizens, aware they are being watched, monitor and self-censor their own behaviours through internalised surveillance. The growth in CCTV deployment across the globe supports this to an extent. For example, China has over 200 million cameras installed for surveillance purposes, the US and Germany over 50 million and the UK over five million. In China and Singapore use of this technology has evolved in public spaces to 'name and shame' those who deviate from social norms and criminal behaviours. For example, Singapore has trialled patrol robots that blast warnings at people engaging in 'undesirable social behaviour' while China uses facial recognition technology and a database of over one billion citizens as part of a 'penalty and reward' system designed to tackle crime and unsocial behaviours. Advocates of this surveillance argue it leads to a decrease in crime while critics counter the real purpose is not public safety but social control. Nonetheless, technological developments have increased the focus on crime prevention and deterrence and whilst these approaches do not stop all crimes, particularly violent crime, studies have shown a link to reductions in drug crime, car crime and property crime.*

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Question			Max mark	Detailed marking instructions for this question
				This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments. **Conclusions** **Response 1** *In the UK there has been a recent shift in focus from punishment towards rehabilitation. The increase of alternatives to custody and the presumption against prison for minor crimes shows that there is an understanding that rehabilitation and tackling the underlying causes of crime will have a more effective impact on reducing reoffending than sending someone to prison. This has resulted in recent drops in the UK prison population. However, amongst the public and political classes there is still an urge to be tough on crime and a perception that punishments are often too soft.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *Rehabilitative approaches are most widely adopted in social democratic western European countries such as Norway, Finland, Sweden, and the Netherlands. This approach is based on the evidence which shows that rehabilitation is the most effective approach for reducing violent crime, homicide, prison populations, reoffending and reincarceration. This approach is one which Scotland is increasingly adopting, diverging from England and Wales to a degree by factoring these values more fully into sentencing policy in Scottish courts. Although the UK and the US have adopted more rehabilitative approaches and community sentences as alternatives to prison, there still persists a desire to exact retributive measures to respond to and deter crime. Rather than being convinced by rehabilitative measures it is argued that the burdensome economic cost of the retributive approaches and mass incarceration has hastened the UK and the US's engaging with rehabilitative approaches. However, the rehabilitative approach does not necessarily fit with many cultural attitudes, or the public appetite in many countries and is actively resisted or rejected. For instance, in the US and the UK centre-right parties define their identities on 'law and order' and not being 'soft on crime which forms part of wider culture wars. Similarly, in Saudi Arabia, China and parts of South America and Southeast Asia, cultural and religious values see a greater emphasis placed on denunciation, retribution and deterrence as a means of responding to crime and deviance.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
14.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** Non-custodial responses, including: • Community Payback Orders (CPOs) • fines • Drug Treatment and Testing Orders (DTTOs) • Restriction of Liberty Orders (RLOs) • restorative justice • success of alternatives: • recidivism rates • person-centred approach • challenges or problems faced: • funding • availability • perception of 'soft justice'. Custodial responses, including: • prisons • Young Offenders Institutions (YOIs) • female prisons and Community Custody Units (CCUs): • purposeful activity • education programmes • challenges or problems faced, including: • overcrowding • drugs • violence • recidivism rates • policy changes: • short sentences • women • children • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Financial penalties continue to be the most common penalty issued by Scottish criminal courts, designed with the purpose to inflict financial pain and act as a deterrence to the individual and wider public to commit crime. In 2018-19, financial penalties accounted for 48% of court sentences, with custodial sentences accounting for 16% of all penalties and community sentences 19%. The issue of collecting fines in Scotland has also improved in recent years with over 80% of fines issued by Justice of the Peace and Sherriff Courts now collected. However, fines are criticised for their limitations in repairing the damage done by the original offence to victims and local communities.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *In relation to non-custodial sentences such as short-term Community Payback Orders (CPO) versus custodial sentences, it is clear Scotland views the former as more effective. The Scottish Government extended the presumption against short sentences (PASS) from three months to twelve months or less in 2019. This was based on evidence which suggested that short custodial sentences are less effective than community sentences at reducing re-offending. For example, people released from a custodial sentence of 12 months or less are reconvicted nearly twice as often as those sentenced to serve a CPO. Scottish Government figures also show a substantial majority successfully complete CPOs in Scotland and that this has consistently remained at around 70% since their introduction in 2011. Despite this, a significant minority of CPOs are breached with the result that a custodial sentence had to be applied in 25% of these cases. Evidence also suggests that the risk of breaching CPOs increases further amongst the under 40s and who are unemployed. Notwithstanding these deficiencies, it is clear that CPOs are more effective than custodial disposals in tackling reoffending and encouraging desistance amongst those who commit what can be considered less serious crimes.* **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *Purposeful activity in prison is often the most effective way to tackle reoffending. There is a link between illiteracy and offending and research shows that prisoners in Scotland who gain employment after release are far less likely to reoffend. Figures from one 'working prison' showed six in ten released inmates find a job or go into further training or education — 50% higher than the national average. However, there is opposition to this approach from those who object to the training and educating of some of societies' worst offenders. In Norway, for example, mass murderer and right-wing terrorist Fjotolf Hansen (formerly known as Anders Breivik) was controversially allowed to undertake a degree course in political science at the University of Oslo. For many this approach does not fit with society's need for retribution and places the offenders' rights and interests ahead of society and the victims.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Drug misuse has a significant impact in Scotland. It is estimated to have a social and economic cost of £3.5 billion a year. According to Scottish Government figures from 2017 it also accounts for 55% of 'other crimes' including handling offensive weapons and drug crimes. One approach Scotland has adopted to combat this has been Drug Treatment Testing Orders (DTTO). As the primary means of reducing the offending behaviour of drug-using offenders DTTOs are an alternative to a custodial disposal order for drug-related offences. Although half of those who complete their orders and have no further convictions within two years, a substantial minority of offenders given a DTTO do reoffend within 12 months, which rises to an astonishing two thirds reconvicted within two years.*

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Question			Max mark	Detailed marking instructions for this question
				This suggest DTTOs have limited success in tackling drug crime, even taking into consideration the nature and complexity of chronic drug dependency and drug misuse. Portugal has adopted a different model to Scotland's which still tends to lean towards a criminal model. Since 2001 Portugal has approached drug use as a public health issue and decriminalised the use of drugs including cannabis, cocaine and heroin amongst other measures. As a result, not only have drug deaths decreased but incarceration rates for drug offences have also decreased by more than 40% with a subsequent easing of pressure on Portugal's criminal justice system. Scotland's drug policy regarding use has shifted towards a more prevention-orientated approach but still criminalises problem drug users. It may be that by adopting the Portuguese model there are further social and economic benefits to be had that the current approach does not yield. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Non-custodial approaches vary in their effectiveness to combat crime. Evidence suggests DTTOs are the least effective non-custodial punishment due the higher reconviction rate compared to other forms of non-custodial punishment. DTTOs even have a higher reconviction rate than prison sentences which further highlights their ineffectiveness. In relation to preventing reconvictions then fines, CPOs and restorative justice measures seem to work better and are perhaps more effective in tackling crime.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *Non-custodial sentences are the most effective approach to dealing with less serious crimes and preventing offenders being inculcated into the prison system and universities of crime. The alternative, prison, sometimes does good but always has the capacity to do harm. It is for this reason that countries, including Scotland, Belgium and Germany are increasingly coming to the view that non-custodial sentences offer financial, social and health benefits to not only offenders but wider society that prisons for short-term sentences do not. However, there is and must still be a place for prison within the punishments the criminal justice system can administer. Prisons, in conjunction with non-custodial sentences, help the criminal justice system to fulfil all its objectives in relation to deterrence, rehabilitation, retribution and incapacitation, as long as they include purposeful activity, education, training and a focus on rehabilitating the offender.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
15.			**15**	*Candidates can be credited in several ways up to **a maximum of 15 marks**.* **Credit responses that refer to:** **Online surveys:** • Survey Monkey, Survey Gizmo and Smart Survey are commercially available websites which allow individuals to create and easily disseminate online surveys • online surveys allow for information to be obtained quickly often covering a wide geographical area • online surveys collect more reliable data especially when using closed questions in comparison to qualitative methods • images, audio and video can be used to enrich questions or provide clarity to instructions, thus increasing the validity and reliability of results • participants can often take an online survey at a time and place that is convenient to them which can increase the response rate • the researcher is unlikely to be present (unless video conferencing technology or a webcam is used) which allows for more objective responses from the participant • sampling bias and expensive software can make some online surveys both unreliable and cost prohibitive. **Focus groups:** • research methods such as, focus groups offer researchers the opportunity to gather qualitative data that is often insightful with a high degree of validity • often captures the views and emotions of participants which can allow the researcher to better plan future research • better able to explain the 'why' and 'how' of participants • can often introduce more researcher bias in comparison to quantitative research methods. **Ethical issues including:** • consent • privacy • harm • deception. *Award marks for any other relevant points.* **Possible approaches to answering this question:** **Analysis and evaluation** **Response 1** *Online surveys can be a useful method for researching the role of social media in portraying young offenders as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research.*

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Question			Max mark	Detailed marking instructions for this question
				This example contains analysis of a relevant issue. **Response 2** *Online surveys can be a useful method for researching the role of social media in portraying young offenders as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free.* **This example contains analysis of a relevant point and supporting evidence.** **Response 3** *Online surveys can be a useful method for researching the role of social media in portraying young offenders as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free.* *However, quick online surveys containing closed questions have drawbacks and can only partially explain how social media portrays young offenders. For example, ONS has a self-completion online survey which gathers perceptions on crime in local areas. Participants may misinterpret questions and answer inaccurately because there is no-one to clarify the questions. Online surveys are also unlikely to fully explain all the factors that influence how social media portrays young offenders due to the closed nature of questions asked.* **This example contains balanced analysis of a relevant point and supporting evidence and explanations which address the specified scenario.** **Response 4** *Online surveys can be a useful method for researching the role of social media in portraying young offenders as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free. However, quick online surveys containing closed questions have drawbacks and can only partially explain how social media portrays young offenders. For example, ONS has a self-completion online survey which gathers perceptions on crime in local areas. Participants may misinterpret questions and answer inaccurately because there is no-one to clarify the questions. Online surveys are also unlikely to fully explain all the factors that influence how social media portrays young offenders due to the closed nature of questions asked.* *Qualitative research methods, such interviews or focus groups, could however gather valid data that more fully captures all the variables that contribute to the portrayal of young offenders in society. Were focus groups to be used to explain the influence of social media for example, such qualitative data could shed light on why the public portray young offenders a certain way. With a researcher fostering discussion among focus group members different topics can be targeted providing an in-depth critique of social media and its portrayal of young people within the criminal justice system. However, focus groups can be expensive, time consuming and, for an inexperienced researcher, focus groups can go off*

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Question			Max mark	Detailed marking instructions for this question
				track or be dominated by one or two individuals, thus making results less valid and reliable. **This example contains balanced analysis of a relevant point, supporting evidence and explanations which address the specified scenario and analysis of the opposing method.** **Response 5** *Online surveys can be a useful method for researching the role of social media in portraying young offenders as they can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free. However, quick online surveys containing closed questions have drawbacks and can only partially explain how social media portrays young offenders. For example, ONS has a self-completion online survey which gathers perceptions on crime in local areas. Participants may misinterpret questions and answer inaccurately because there is no-one to clarify the questions. Online surveys are also unlikely to fully explain all the factors that influence how social media portrays young offenders due to the closed nature of questions asked.* *Qualitative research methods, such as interviews or focus groups, could however gather valid data that more fully captures all the variables that contribute to the portrayal of young offenders in society. Were focus groups to be used to explain the influence of social media for example, such qualitative data could shed light on why the public portray young offenders in a certain way. With a researcher fostering discussion among focus group members different topics can be targeted providing an in-depth critique of social media and its portrayal of young people within the criminal justice system. However, focus groups can be expensive, time consuming and, for an inexperienced researcher, focus groups can go off track or be dominated by one or two individuals, thus making results less valid and reliable. While collecting and storing data from both online surveys and focus groups researchers would have to adhere to the British Sociological Association's statement of ethical practice. Any researcher conducting a focus group for example would also need to ensure that participants do not record the comments or images of other participants. Therefore, it is the researcher's duty to communicate to all participants what data will be collected and how long it will be stored to ensure data protection standards are adhered to.* **This example contains balanced analysis of a relevant point, supporting evidence and explanations which address the specified scenario, analysis of the opposing method and consideration of ethical issues related to one method.** **Conclusions** **Response 6** *Online surveys are a more effective method for gathering data on the role of social media in portraying young offenders. This is because many online surveys are inexpensive, quick to create and large sampling frames can be incorporated into the research.* **This concluding remark summaries key points — 1 mark.**

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Question			Max mark	Detailed marking instructions for this question
				Response 7 *Online surveys are a more effective method for gathering data on the influence of social media in portraying young offenders. This is because many online surveys are inexpensive, quick to create and large sampling frames can be incorporated into the research. Online surveys also tend to be quantitative allowing for comparisons to be made and results to be analysed quickly. Therefore, findings from the group studied in the sample can be applied to make generalisations about the wider population.* **This concluding remark clearly shows which method is preferred, supported with reasons — 2 marks.** **Response 8** *Online surveys are a more effective method for gathering data on the influence of social media in portraying young offenders. This is because many online surveys are inexpensive, quick to create and large sampling frames can be incorporated into the research. Online surveys also tend to be quantitative allowing for comparisons to be made and results to be analysed quickly. Therefore, findings from the group studied in the sample can be applied to make generalisations about the wider population. Although focus groups can produce more qualitative data it is difficult for this research method to enable the researcher to draw generalisations about social media's portrayal of young offenders across the wider population.* **This concluding remark clearly shows which method is preferred, supported with reasons for rejecting the other method — 3 marks**

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Question			Max mark	Detailed marking instructions for this question
16.			**15**	*Candidates can be credited in several ways up to **a maximum of 15 marks**.* **Credit responses that refer to:** **Arguments that the source is valid and/or reliable:** • statistics appear on the Scottish Government website suggesting a high degree of validity and reliability • Cabinet Secretary Humza Yousaf is quoted in the blog increasing its validity • a link to the full domestic abuse statistical publication is provided for researchers wishing to verify information • a uniform system of recording incidents is now being used by all police divisions to record incidents of domestic abuse thus increasing the reliability of data collected • data provided by Police Scotland go through a process of 'quality assurance' in which data is checked • the table establishes trends over time. *Award marks for any other relevant points.* **Arguments that the source's validity and/or reliability are questionable:** • domestic abuse figures reflect only those incidents in which victims have come forward to report the crime • victims many times live with the perpetrator further reducing the likelihood of reporting the abuse • The Domestic Abuse Act which came into force in 2019 has resulted in additional protections for victims and is likely to have resulted in more cases being brought forward to the police. This makes comparisons to previous years less reliable • the 'Every 9 Minutes' campaign has inevitably raised awareness about domestic abuse and may have resulted in an increase in domestic abuse reporting. This makes comparisons with previous time periods less reliable • Mentors in Violence prevention schemes also impact year on year domestic abuse comparisons • the information on methodology states that 'some values for certain variables are marked missing' which limits the validity and reliability of the statistics • the information on methodology highlights the different ways police 'legacy' forces have recorded information in the past making year on year comparisons less reliable • 2009-2010 saw further changes to when and how incidents were reported to the police • the table only includes selected local authority areas. *Award marks for any other relevant points.*

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Question			Max mark	Detailed marking instructions for this question
				Possible approaches to answering this question **Analysis and evaluation** **Response 1** *Source B is a blog from the Scottish Government website based on domestic abuse statistics produced by Police Scotland. Official statistics suggest a high degree of validity and reliability as professional civil servants and statisticians will have scrutinised the statistics before releasing to the public.* **This example contains analysis of one key aspect related to the trustworthiness of the source.** **Response 2** *Source B is a blog from the Scottish Government website based on domestic abuse statistics produced by Police Scotland. Official statistics suggest a high degree of validity and reliability as professional civil servants and statisticians will have scrutinised the statistics before releasing to the public. The Scottish Crime Recording Board (SCRB) oversees how crime is recorded by police in Scotland. A single police force, Police Scotland, makes recording crime more uniform in comparison to police recorded crime prior to 2013 when there were eight regional police forces. Because the blog is written using information from official statistics readers of the blog can place a high degree of trust in its contents.* **This example contains analysis, supported by evidence, of one key aspect related to the trustworthiness of the source.** **Response 3** *Source B is a blog from the Scottish Government website based on domestic abuse statistics produced by Police Scotland. Official statistics suggest a high degree of validity and reliability as professional civil servants and statisticians will have scrutinised the statistics before releasing to the public. The Scottish Crime Recording Board (SCRB) oversees how crime is recorded by police in Scotland. A single police force, Police Scotland, makes recording crime more uniform in comparison to police recorded crime prior to 2013 when there were eight regional police forces. Because the blog is written using information from official statistics readers of the blog can place a high degree of trust in its contents.* *However, Source B is a blog and it may wish to place the Scottish Government and Police Scotland in a favourable light. The blog contains considerable information informing the reader about domestic abuse campaigns to raise awareness of domestic abuse and gender-based violence. There is no criticism of the Scottish Government's approach to reporting domestic abuse suggesting bias. The source also contains a quote from Humza Yousaf, the Justice Secretary, citing new legislation and the 'Every 9 Minutes' campaign. Even though there is an increase in reported domestic abuse Yousaf defends the figures stating the statistics published were before the new domestic abuse laws came into force.* **This example contains analysis and evaluation of strengths and weaknesses of key aspects of the source, supported by knowledge of social science research.**

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Question			Max mark	Detailed marking instructions for this question
				Response 4 *Source B is a blog from the Scottish Government website based on domestic abuse statistics produced by Police Scotland. Official statistics suggest a high degree of validity and reliability as professional civil servants and statisticians will have scrutinised the statistics before releasing to the public. The Scottish Crime Recording Board (SCRB) oversees how crime is recorded by police in Scotland. A single police force, Police Scotland, makes recording crime more uniform in comparison to police recorded crime prior to 2013 when there were eight regional police forces. Because the blog is written using information from official statistics readers of the blog can place a high degree of trust in its contents.* *However, Source B is a blog and it may want to place the Scottish Government and Police Scotland in a favourable light. The blog contains considerable information informing the reader about domestic abuse campaigns to raise awareness of domestic abuse and gender-based violence. There is no criticism of the Scottish Government's approach to reporting domestic abuse suggesting bias. The source also contains a quote from Humza Yousaf, the Justice Secretary, citing new legislation and the 'Every 9 Minutes' campaign. Even though there is an increase in reported domestic abuse Yousaf defends the figures stating the statistics were published before the new domestic abuse laws came into force.* *To increase the trustworthiness of the source the blog could contain quotations from domestic abuse victims and their experience reporting to the police. Police Scotland domestic abuse statistics do not explain "why" or "how" the domestic abuse happened. In addition, the difficulties reporting their abuse are not illustrated in the source. Such omissions would provide for not just a more balanced view of domestic abuse in Scotland but could add meaning to the statistics featured in the blog.* **This example contains analysis and evaluation of a key aspect of the source supported by knowledge and social science research and reference to additional or alternative approaches which increase the trustworthiness of the source.** **Conclusions** **Response 5** *Overall, Source B is a trustworthy source as the blog features official crime statistics from the Scottish Government and an interview from the Justice Secretary, Humza Yousaf, who corroborates the domestic abuse statistics. The Scottish Justice Secretary is well-placed to have considerable knowledge about domestic abuse in Scotland which adds to the overall trustworthiness of the source.* **This example contains a simple summary of key points — 1 mark.**

Question			Max mark	Detailed marking instructions for this question
				Response 6 *Overall, Source B is a trustworthy source as the blog features official crime statistics from the Scottish Government and an interview from the Justice Secretary, Humza Yousaf, who corroborates the domestic abuse statistics. The Scottish Justice Secretary is well-placed to have considerable knowledge about domestic abuse in Scotland which adds to the overall trustworthiness of the source. In addition, since 2013 the National Statistics on Recorded Crime in Scotland have been produced from a single Police Scotland IT system further increasing the validity and reliability of crime statistics reported and recorded in Scotland. The Scottish Crime Recording Board (SCRB) also scrutinise the data before it gets published in the National Statistics. This process further proves that Scottish Government statistics can be trusted.* **This example contains a clear overall judgement about the trustworthiness of the source supported by reasons/evidence — 2 marks.** **Response 7** *Overall, Source B is a trustworthy source as the blog features official crime statistics from the Scottish Government and an interview from the Justice Secretary, Humza Yousaf, who corroborates the domestic abuse statistics. The Scottish Justice Secretary is well-placed to have considerable knowledge about domestic abuse in Scotland which adds to the overall trustworthiness of the source. However, some may point to the inherent bias of Humza Yousaf and domestic abuse statistics. As he represents the Scottish Government he will be keen to present the government in a favourable light both in steps the Scottish Government is taking to combat domestic abuse but also in explaining why the latest statistics reveal an increase in domestic abuse.* *The blog also does not adequately acknowledge the extent of domestic abuse that is not reported. Some research suggests that for every 15 incidences of domestic abuse just one incident is reported to the police. Despite such high levels of under reporting the source does still retain a high degree of trustworthiness. It does acknowledge that not all domestic abuse is reported and, since 2013, the National Statistics on Recorded Crime in Scotland have been produced from a single Police Scotland IT system. In addition, the Scottish Crime Recording Board (SCRB) scrutinise the data before it gets published in the National Statistics. Therefore, the views and data cited in Source B can be trusted.* **This example contains a clear overall judgement about the trustworthiness of the source supported by analysis and evaluation — 3 marks.**

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Question			Max mark	Detailed marking instructions for this question
17.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • social stratification • social class • structure versus agency • meritocracy • social mobility • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Social stratification refers to a society's categorisation of people into rankings based on socio-economic factors like wealth, income, race, education and power and involves inequalities between groups in the distribution of resources such as wealth, income, status and power. These inequalities persist or continue over time. In the UK, gender, class, ethnicity and age are the main criteria by which people tend to be stratified. According to the functionalist approach, modern society requires a system of unequal rewards and so inequality and stratification are both a necessary evil. It provides an incentive for the most talented people to train for key occupations that are essential for society to continue. These top positions must provide rewards such as high pay/status to attract the most able people. They believe that the stratification system fulfils the function of ensuring that the most important jobs are filled by the most talented and highly qualified people.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *By its very nature, the existence of social stratification is at the heart of inequality and its continued existence. Social stratification refers to social hierarchies, usually based on income and wealth: those higher in social hierarchies have greater access to power and resources. In a class system, an individual's place in the social system is based on Achieved Statuses, which are statuses that we either earn or choose, and that are not subject to where or to whom we were born. The American Dream epitomises this idea: that all people, regardless of the conditions into which they were born, have an equal chance to achieve success and that those born within a class system can choose their educational level, careers, and spouses. Social mobility, or movement up or down the social hierarchy, is a major characteristic of the class system. Some sociologists argue that Britain is a meritocracy, to a large extent. This means that status is achieved, and occupational positions are allocated on the basis of individual ability. So, social class origins, gender or ethnicity are seen as less significant than talent and motivation in determining an individual's occupation and class position.*

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Question			Max mark	Detailed marking instructions for this question
				High rates of social mobility suggest that society is meritocratic, and that social stratification is not the root of inequality. **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *Wealth is distributed unequally in the UK. For example, the wealthiest 1% own 33% of marketable wealth whilst the least wealthy 50% own just 3% of this wealth. Income is also distributed unequally in the UK. For example, in 2007, the poorest 10% of people received 3% of total income while the top 10% received 40% of total income. Similarly, data in the US reveals a deeply unequal society in which the top 10% of households control 70% of the nation's wealth, according to a 2019 Federal Reserve study.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Studies show that education is positively correlated with income and wealth. A survey of young adults in the US found that those with at least a college degree are nearly four times as wealthy as the average young person. They also have 8.3 times as much wealth as those who just completed high school. These findings show that education clearly plays a role in creating or moving people away from inequality, regardless of social stratification systems that may be at play; however, it is important to recognise that elements of social stratification do impact upon this, with, for example, race intersecting with academic achievement. In the UK, government data shows that 31.5% of White graduates got a first class degree, compared with 14.5% of Black graduates — the highest and lowest percentages out of all ethnic groups. The Pew Research Center has reported that completion of college is stratified by ethnicity. An estimated 63% of Asian Americans and 41% of Whites graduate from college compared to 22% of Blacks and 15% of Latinos. This data reveals that systemic racism shapes access to higher education, which, in turn, affects one's income and wealth. Ultimately, the existence of a system of social stratification based on race, perpetuates inequality.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Inequalities based on class, gender, ethnicity and age are all significant and remain a problem in the 21st Century. Class, gender, ethnicity and age are interlinked aspects of inequality rather than completely separate aspects and the stratification of people into hierarchies impacts people's daily lives. Class-based inequalities in life chances persist in the 21st century and despite changes in class and dealignment processes, inequality has persisted and will likely continue to do so.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *It seems clear, therefore, that inequality will indeed always persist, so long as social stratification does. This is especially true in the West, where systems of oppression intersect to shape people's lives and to sort them into hierarchies. Social class, race, gender, sexuality, nationality and religion all influence stratification, and the interconnected nature of this stratification process makes it very difficult to resolve the inequality inherently caused by it. That said, moves by governments to overcome issues caused by this are bringing about improvements. The 2016 Race Equality Framework for Scotland includes an ambition to create inclusive learning environments, increase the diversity of the education workforce, and improve the educational and employment outcomes for BAME students, over the next 15 years. The overarching intention here is to break down inequality and social stratification, such that neither exists for these groups. As a result of such changes in Scotland and elsewhere, many commentators would argue that inequalities based on ethnicity-based stratification are much less significant than they were, though they do still persist and remain a major issue to tackle.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
18.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • definitions and key features • theorists including: – Durkheim – Marx – Spencer – Parsons – Merton • modern relevance and contemporary examples of individualism, functionalism, structuralism and conflict theory • criticisms of theories • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Conflict theory is arguably the only relevant theory left, when it comes to trying to explain why social inequality exists. Most Western countries in the world today operate on the basis of economic competition and are separated into groups of people or classes of people who either have power or who do not. The role of power in determining who has money and who does not is crucial and essentially explains why some people face great social inequality, while others live in comfort and even luxury. Conflict theory sees social inequality as the result of a struggle for scarce resources and is very much relevant in the 21st Century, arguably much more so than the idea that inequality is somehow functional.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence but lacks evaluation.** **Response 2** *Conflict theory views social and economic institutions as tools of the struggle between groups or classes, used to maintain inequality and the dominance of the ruling class and to perpetuate competition between groups within society over limited resources. Conflict theory assumes that the elite will set up systems of laws, traditions, and other societal structures in order to further support their own dominance while preventing others from joining their ranks and it is this very structure that can be seen to be the cause of and the reason for the continuance and deepening of social inequality in much of the Western world today. The majority of sociological thinkers would argue that it is this deep-seated and institutionalised division that means social inequality is so difficult to tackle and eradicate, even in societies where many citizens have come to believe that inequality serves no useful function and ought to be rooted out. Karl Marx viewed society as being in a state of perpetual conflict because of competition for limited resources. The argument holds that left to their own devices, human beings are not orderly creatures. Social order is maintained by domination and power, rather than consensus and conformity.*

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Question			Max mark	Detailed marking instructions for this question
				Meanwhile, functionalist Herbert Spencer argued that poverty was good for society as it encouraged people to work in order to avoid being poor. He said that the poor themselves deserved to suffer poverty because of their lack of morality. While an unpopular and certainly not openly held view, there is clear evidence that this is still relevant in the UK today. for instance, critics of the Universal Credit system argue it is overtly punitive with the sanctions regime built into it and that this is counterproductive. By 2018 over 1 million disabled recipients had been sanctioned and had benefits frozen or reduced in what a Work and Pensions Select Committee called a "bullying aspect". Nevertheless, theorists like Murray and Saunders would counter that in the UK the benefit system means that people make a rational choice to stay poor and develop a culture that is state dependent and that the government are duty-bound to ensure work pays. **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *In the UK, a lot of recent welfare policy under the Conservative government has been focused on 'supporting people into work' rather than actually trying to cut poverty. A two-child limit for tax credits and universal credit, the so-called bedroom tax, the benefit cap and the rollout of universal credit has pushed many families deeper into poverty. The structures that should exists to help these people rise out of poverty and achieve social mobility do very little in fact to allow this to happen. This is also the case in the US, where attitudes to welfare are strongly influenced by conservative free-market economic ideas who very much believe federal welfare reduces the work ethic of those receiving it. Though, with Biden now in place as President, some of this is likely to change. Early in his term, he announced a push to increase the federal minimum wage to $15 as part of a wide-ranging covid relief package and declared that 'anyone who holds a full-time job shouldn't live in poverty'.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *The UK has a very high level of income inequality compared to other developed countries. Recent evidence suggests income inequality has been high with the UK's Gini coefficient increasing to an all-time high of 41% (0.41) in 2017 and sitting at 34.6% in 2020. The widening inequality (with indifferent economic performance) is largely a US-UK phenomenon, with nothing like the same situation in Germany, Scandinavia or Canada. The UK figures in the high 30s compares to figures in the mid-20s for many other European nations, including Finland, Belgium and the Netherlands, yet far better than much of Sub-Saharan Africa and South America, where figures regularly hit the 40s and 50s, and as high as 59% and 63% in Namibia and South Africa respectively. This may be due in part to structuralism and the different approaches in these places to tackling social inequality, the extent to which some form of welfare state is provided and the way that workers' rights are determined and protected.*

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Question			Max mark	Detailed marking instructions for this question
				Much of this is related to collectivist social democratic welfare models and a focus on the values of equal opportunities and universality. Nordic countries have a greater sense of social cohesion and have adopted more collectivist policies than many other European nations. In Denmark, for example, workers in fast-food chains such as McDonald's earn the equivalent of nearly £14 an hour under collective bargaining, more than double the average UK fast-food wage. **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and other countries, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *Social and economic inequalities have been reduced. While the great inequalities in wealth and income continue to exist, the working class has not got poorer as Marx suggested. Living standards have improved vastly since Marx's day, and the welfare state and compulsory state education have given the working class a better lifestyle than Marx could ever have predicted. So, conflict theory, while still remaining relevant clearly isn't the only relevant theory today, far from it in fact and this varies from nation to nation.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *Study after study has come to the same conclusion. Time spent in education — including the vital early years — is the most important determinant of future social status and success in schools is the most important factor determining mobility. Far too many young people from disadvantaged backgrounds still leave school without good qualifications and the gap between poorer children and others remains unacceptably high. This pattern continues when we look at the figures for poorer children entering higher education. Rather than seeing high income and prestigious jobs as being a reward for a person's talent and time as functionalists do, conflict theorists point out that many people in unskilled jobs are pushed into that kind of employment because of social inequality: they have not had the educational opportunities afforded to those who are better-off and, as such, the cycle continues. Many things cannot be explained through this lens alone and to say that conflict theory is the only relevant theory left to explain inequality today, would be incorrect. Whereas conflict theory views all aspects of life as a competition, functionalism understands society as a system striving for equilibrium. To say that conflict theory is right or wrong would simply not be correct. Such theories are dependent on context and specific to certain situations: conflict theory is not the all-encompassing theory in explaining inequality, and cannot for example take account of the mutually beneficial and often harmonious relationship between, for example, employee and employer; however, it certainly is a useful lens through which we can view inequality and attempt to understand why it continues to be so deep rooted.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
19.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • impact of inequality at an individual level, including education, employment, mental health and lifestyle • school experience — exclusion, exam performance, adverse childhood experiences • further or higher education and training • employment and underemployment • mental health • lifestyle, for example smoking rates, substance use, obesity rates • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Inequality has a huge impact on individuals, and it is true that it affects education significantly. However, arguably a bigger and longer term impact on individuals is on their mental health. Evidence suggests socially excluded groups have been shown to experience higher rates of mental ill-health than the general population. For example, more than 80% of people experiencing homelessness report having a mental health difficulty, and people in this group are 14 times more likely than those in the general population to die by suicide. These issues also affect children — those from the poorest 20% of households are four times more likely to experience serious mental health difficulties by the age of 11 than the wealthiest 20%. This suggests that mental health is impacted by social inequality and this will have an impact on other aspects of their life, like education, rather than the other way around.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and a basic front-ended evaluation.** **Response 2** *Research in the UK has consistently shown that an individual's educational success is severely impacted by social inequality. Education should compensate for inequities of birth, by helping level the playing field and enabling children to rise above their birth circumstances; however, it is increasingly apparent that performance gaps by social class take root in the earliest years of children's lives and fail to narrow in the years that follow. A recent article in the Guardian, outlined how these inequalities are entrenched before a child is born. Children born in deprived areas have a lower birth weight than their richest peers and are more than twice as likely to have a speech, language or communication need. Poorer children are more likely to suffer everything from mental distress to respiratory conditions, damaging their educational potential. For the one in five children living in houses classed as food-insecure, poor diet and hungry bellies interfere with their ability to learn. Meanwhile, children with middle-class, professional parents are exposed to more words earlier on. All of this opens up a gap in vocabulary and achievement from a young age. Universal primary and secondary education is expected to overcome this, but, for most, even the best teaching cannot cure injustices deeply embedded in our social fabric. However, Owen Jones argues that a child's family background is a greater driver of their educational success than which school they go to. According to the OECD, children from privileged backgrounds tend to do as well at state schools as their privately educated peers. The main factor driving their educational success, therefore, is*

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Question			Max mark	Detailed marking instructions for this question
				their family background, rather what happens after they pass through the school gates aged four or five. **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *People from lower socio-economic groups tend to undertake more risky health behaviours and less opportunity to lead healthy lives. In Scotland, this can be seen through recent evidence from ASH who say that smoking has been identified as the single biggest cause of inequality in death rates between rich and poor in the UK. Smoking accounts for over half of the difference in risk of premature death between social classes. Death rates from tobacco are two to three times higher among disadvantaged social groups than among the better off. The same is true across many other countries, including those who have introduced similar anti-smoking legislation like Scotland. In Germany, for example, a recent study looking at the effect of such legislation found that it had helped reduce smoking rates in the country, but that people who quit smoking were on average more highly educated, had a higher income and had most likely a lower cigarette consumption (before quitting).* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *A recent Harvard Gazette article demonstrated that this is also true in the US. It made the point that if inequality starts anywhere, it is with a faulty education. Whereas, 'a strong education can act as the bejewelled key that opens gates through every other aspect of inequality, whether political, economic, racial, judicial, gender or health-based'. Simply put, a top-flight education usually changes lives for the better. There are many examples of people who have done just that and changed their lives for the better, removing an impact or inequality they may otherwise have faced. The article, for example, pinpoints the way in which Daval Patrick, former Governor of Massachusetts felt that 'education has been the path to better opportunity for generations of American strivers, no less for me.' And yet, in the world's most prosperous nation, as in the UK in fact, it remains an elusive goal for millions of children and teenagers and continues to drive inequality for them for the rest of their lives.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and another country, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *While an individual's experience of school can be hugely impactful when it comes to inequality and life chances, other aspects of inequality are far more important. Many people who do not thrive in a school environment go on to achieve success and are not held back by their education. Mental-health issues and other wider health problems have a far greater impact on individuals. Studies in the UK and across other nations in Europe have found that higher incomes were associated with better health, and that for every increase in income there was a corresponding increase in life expectancy. A study by the Joseph Rowntree Foundation also shows that*

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Question			Max mark	Detailed marking instructions for this question
				people with fewer social relationships died earlier, on average, than those with more social relationships. The influence of social relationships on the risk of death is comparable to other well-established risk factors such as smoking and alcohol consumption. This is a far deeper-rooted issue and effect of education, which arguably only affects individuals for a short period of time. **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *It seems quite clear that educational inequalities emerge in very early childhood and the impact of this continue throughout a person's life — a poor quality and experience through the school gates, affects likely exam performance and grades, entry into higher education and, thus, the chances of highly paid future employment and total lifetime earnings. The knock-on effect of poor educational attainment on the individual's life chances make it the most significant impact of inequality. The interconnected nature of education, employment, status and the associated factors of lifestyle choice, health and life chances clearly make education and the attainment gap the overarching issue that has to be resolved by governments if they are to improve the lot of people who find themselves born into impoverished families and surroundings. While a lucky few can break the mould, often no matter how much hard work and natural flair a child has, they are unable to break through the barriers that are artificially in place for them when they walk through the school gates aged just four or five. Extensive research has conclusively demonstrated that children's social class is one of the most significant predictors — if not the single most significant predictor — of their educational success. Moreover, it is increasingly apparent that performance gaps by social class take root in the earliest years of children's lives and fail to narrow in the years that follow: children who start behind stay behind — they are rarely able to make up the lost ground. Meanwhile, the Social Mobility and Child Poverty Commission found that better-off children who were less able at age 5 were 35% more likely to become high earners as adults than children who scored highly for cognitive development at age five but came from poor families. In essence, wealthy families provide a glass floor for children which they don't fall below into downward social mobility.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified and evidence-based conclusion.**

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Question			Max mark	Detailed marking instructions for this question
20.			**30**	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • impact of inequality at a national level, including healthcare, housing, welfare and unemployment: • healthcare: – provision – demand – access • housing: – provision – demand – access • welfare: – provision – demand – access • unemployment: – and gender – and age groups – and ethnic minorities – and regions • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *Social inequality impacts upon the provision of, demand for and access to healthcare in a huge way. However, arguably other issues are far more of a problem at a national level. For example, unemployment is a huge problem for societies, and it has a much greater impact on those from more deprived areas and backgrounds and causes big problems for governments to have to deal with. During the COVID-19 outbreak, for example, people initially were quick to suggest we were all in the same storm, but the impact of unemployment and issues affecting income and work varied massively. Higher paid people were more likely to be able to work from home, usually on full pay, and with numerous cost savings like having no transport or childcare costs. Low-paid people, on the other hand, were more likely to have to continue to go to work, more likely to be furloughed and less likely to receive a good level of sick pay. This all put them at a higher risk of contracting the virus, but also increased their chances of taking a financial hit and falling into, or further into, poverty too.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and a basic front-ended evaluation.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *While the concept of equity in access to health care has been a central objective of the NHS since it began, inequalities in health care access persist. Research strongly suggests that so-called 'hard to reach' groups suffer poorer health outcomes and much of this can be attributed to them being less likely to access services for a variety of reasons, including travel, communication issues, waiting times and being ill-informed about the potential treatments that may be on offer to them. In the UK, healthcare is free at the point of access, but despite this it does not necessarily lead to equal access to or provision of healthcare for different groups in society and this is arguably the most pressing problem presented by inequality at national level. A 2018 study, for example, 'found substantive differences in waiting times within public hospitals in England between patients with different socioeconomic status: up to 35% difference, or 43 days, between the most and least deprived population quintile groups.' In fact, patients in the least deprived quintile group benefited from shorter waiting times and the associated health benefits were worth up to £850 per person. In part the author's put this down to the ability of patients in less deprived areas, who were richer and more educated individuals, having fewer financial or other constraints that limit their ability to travel to access shorter wait times. Likewise, provision is not necessarily equal either. Hart's Inverse Care Law, based on a report from the 1970s but which still holds relevance today, points out just how big the impact of social inequality is here. 'In areas with most sickness and death, general practitioners have more work, larger lists, less hospital support and inherit more clinically ineffective traditions of consultation than in the healthiest areas; and hospital doctors shoulder heavier case-loads with less staff and equipment, more obsolete buildings and suffer recurrent crises in the availability of beds and replacement staff. These trends can be summed up as the inverse care law: that the availability of good medical care tends to vary inversely with the need of the population served.' The impact of social inequality here is great.* **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *Young people tend to suffer higher levels of unemployment compared to others in the population and, as a result, rely more on government support where available. The recent COVID-19 pandemic highlighted this, with young people being especially hard hit by school closures and the closing down of entry-level jobs, as well as internships and apprenticeships. Early evidence suggests that young people have been disproportionately affected by the COVID-19 crisis. They tend to hold jobs that are less secure and in hard-hit industries, such as hospitality. A BBC report suggested that pupils in the UK could lose an average of £40,000 each in lifetime earnings from lost time in school because of COVID-19, and this is likely to affect those from disadvantaged backgrounds even more. Another report showed that in all of the G20 countries job losses between December 2019 and April 2020 were much larger for younger people than for adults aged 25 and over. So young people the world over are clearly impacted significantly by inequality when it comes to employment, during difficult times especially.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *Access to affordable housing is a huge problem both in the UK and further afield. In some countries, the market has been unable to meet the growing demand to supply housing stock at affordable prices. Although demand for affordable housing, particularly rental housing that is affordable for low- and middle-income earners, has increased, the supply has not. Shelter research shows that there are affordability problems right across the UK and this is a major issue because as house prices continue to rise, first-time buyers are placed under huge pressure to overextend themselves with high repayments which make them vulnerable to drops in income or rises in interest rates. They found that, in 59% of English local authority areas, less than one in ten available properties are affordable to a working couple with children on average wages and there are 13 local authority areas where no available properties are affordable to a single person on average wages. This is also an issue in countries like Sweden, despite them often being held up as a nation with much lower levels of and consequences related to inequality. The Borgen Project found that 'there is a lack of available and affordable housing in Sweden, especially in cities. In 2017, 88% of municipalities reported a housing shortage. The wait time for an apartment is significantly increasing over time, making it nearly impossible to secure a rental apartment.' The situation appears even starker in the US, where a 2019 report by the National Low Income Housing Coalition found that there wasn't a county in the US where a minimum wage worker working 40 hours a week could afford to rent a two-bedroom apartment. Thus, a housing crisis is clearly a major impact of inequality in many western countries and arguably far more pressing than the issue of healthcare.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and other countries, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.** **Conclusions** **Response 1** *While healthcare is a huge issue with clear differences in experience with the service, the fact that the UK has a National Health Service, free at the point of use, means it is arguably not in fact the greatest issue at a national level when it comes to social inequality. In fact, unemployment seems to be a far bigger problem. The COVID-19 pandemic made this clear. Millions of people were not eligible for sick pay because they did not earn enough or were on zero-hour contracts, Universal Credit was far from sufficient to look after their families. Marcus Rashford having to step into campaign to ensure young people received school meals while school buildings were shut and urging Boris Johnson to 'fix' the system long-term is a good example of just how big an issue unemployment and the poverty it brings is for the nation to try to tackle.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *Social inequality clearly has a significant impact on healthcare, housing, welfare and unemployment. In addition, it is worth recognising that each of these four areas is arguably inextricably linked to one another for a great many people. Those facing healthcare problems related to provision, demand and access are often also the same people who are affected by unemployment, suffering from housing poverty and in receipt, or need of, welfare support. When it came to the COVID-19 pandemic for example, existing health inequalities were linked to a greater severity of symptoms, and likelihood of death, for those contracting the virus. This was evident in early data from China and Italy which indicated that the effects of the virus were most acute for those that already suffered poor health. The risk of developing a long-term health condition, or multiple long-term conditions, is linked to the level of deprivation in which one lives: in the least deprived fifth of areas, people can expect to have more than two conditions by the time they are 71 years old. Yet in the most deprived fifth, the age at which the same can be said to be true is just 61 years of age. The fact that 91% of those in the UK who died from COVID-19 had at least one pre-existing condition further exemplifies the significant issues faced at a national level linked to social inequality.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified and evidence-based conclusion.**

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Question			Max mark	Detailed marking instructions for this question
21.			30	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to:** • effectiveness of government responses to inequality: – welfare provision – healthcare provision – education provision – housing provision – social security – employment strategies – legislative approaches – economic policy • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *The UK government has various strategies in place to try to tackle social inequality brought about by low paid employment and it is clear that these need to be more effective. In January 2021, it was reported that the UK's unemployment level had risen to 5%, the highest level in the last five years. That said, the furlough scheme, which was introduced during the COVID-19 pandemic to pay at least some of the wages of workers who would otherwise have been laid off, did help to keep the unemployment rate down. Additionally, increases to Universal Credit payments were put in place. However, many self-employed people and small business owners were not entitled to claim any support and, out with COVID-19 times, the UK's unemployment rate and strategies in place by the government to tackle social inequality and its causes need to be more effective — not enough jobs are being created and welfare provision is too low.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence with basic evaluation.** **Response 2** *Education is closely tied to skills and training which in turn determine people's ability to earn a decent living. Government policy must ensure young people entering the workforce have the training they need and that workers can make the best use of their talents. Current government policy in relation to education provision simply does not ensure this and it needs to be more effective if social inequality is ever to improve. In 2015, The Scottish Attainment Challenge was launched to try to achieve equity in education, 'by ensuring every child has the same opportunity to succeed, with a particular focus on closing the poverty-related attainment gap.' £750 million has been set aside to target pupils in the local authorities of Scotland with the highest concentrations of deprivation. While the existence of such an initiative is commendable, it has not yet been effective in closing the attainment gap. Figures from 2020, show 88.3% of young people from the poorest areas going on to a positive destination post school, compared with 96.7% for those from the most affluent communities — a gap of 8.4%, with Fife having the largest attainment gap in Scotland, at 10.5%. This gap has closed from around 20% in 2009 showing some progress being made, with John Swinney saying the 'latest statistics demonstrate that our reforms are working and education in Scotland is moving in the right direction' however, the gap is still too big. In addition, the gap persists in numeracy and literacy attainment at*

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Question			Max mark	Detailed marking instructions for this question
				all levels from primary one through secondary education and shows that government policy, while somewhat effective, could and needs to be more so. **This example contains analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *How a country taxes its population is usually quite closely related to how effectively they are able to tackle social inequality. Where taxation is progressive a greater proportion of total taxation falls on the wealthiest, the poorest, proportionally, pay less tax and income inequality tends to fall. Where taxation is regressive, more tax, proportionally is taken from people on lower incomes and the wealthiest, proportionally, pay less tax and income inequality tends to rise. Under the Labour government in 2010, the top rate of income tax was raised to 50% for those earning over £150,000. This was an example of more progressive taxation than the current situation where the top rate of income tax for the highest earners has been reduced to 45%. Some in the Conservative Party have called for a further reduction to 40%. However, these are both still low when compared to the taxation policies on Scandinavian nations, who have higher levels of public spending and top personal income tax rates closer to 60%.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *Britain's unemployment rate of 5% in November 2020 compared to 6.1% in Germany in the same month and 6.7% in the US in December, suggests that in fact the UK government's strategies to tackle potential inequalities that COVID-19 would bring were actually fairly effective, at least in the short term. The UK furlough scheme has supported more than nine million jobs since being launched in the spring of 2020. A five-nation comparison study carried out by the Institute for Government in May 2020, concluded that Australia and the UK were far more successful than Canada, the US and Ireland in supporting incomes while retaining employer-employee links. Much of this is down to how schemes similar to furlough were implemented. While in the UK, the system served to protect jobs and ensure employers and employees both benefited from maintaining the status quo as far as possible with regard to keeping people employed in their normal roles throughout the time. Wage subsidy systems elsewhere, like in the US and Ireland, meant that many low wage employees were actually better off if their employer laid them off, which is the opposite of what the UK tried to promote and achieve. Ireland quickly remedied this when it became clear this was the result.* **This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and other countries, evaluation of their similarities/differences and evaluation of the validity of alternative arguments.**

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Question			Max mark	Detailed marking instructions for this question
				Conclusions **Response 1** *Responses to inequality are most effective when governments commit to and fund legislation which helps to change the status quo. Some legislation has had an effect and it is clear that government responses to tackling inequality can be effective. However, none of them have totally rid our society of inequality and, in fact, are far from doing so. As such, most would agree that they all need to be more effective, even if in differing degrees. For example, despite equality legislation, women continue to face social inequality in the UK today. Despite improvements in recent years, with more women now graded as 'Directors' in the workplace, they remain over-represented in junior grades and under-represented in senior grades. The UK government's Gender Pay Gap Report 2020 estimated that the pay gap has reached 16.9%. Thus, inequality continues to impact women, making them more vulnerable to low income and poverty, regardless of legislative policy that should have had more effect in recent years.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *Government responses to inequality in the UK have become more effective in recent years. Policies have been successful at narrowing the effects of inequality brought about by low-paid employment, educational attainment levels and the issues related to demand for, provision of and access to healthcare, housing and social security. Poverty among over 75s is at a record low; however, poverty among under 25s is approaching a record high. Half of those in poverty live in a household in which someone works- a clear indication that strategies to ensure better employment levels and fair levels of pay have not been effective. Likewise, the amalgamation of a number of working-age benefits and tax credits into one single monthly payment called Universal Credit, has been seen by many as simply a push to curb public spending by getting people back to work and contributing to the economy, rather than properly tackle social inequality. These policies after all do little to ensure that people get the support, training and adequate education that would be needed to allow them to do more than achieve entry-level, minimum wage jobs. Furthermore, income inequality has widened in Britain in the last 30 years suggesting that governmental responses to wealth inequality have not been anywhere near effective enough. The Poverty and Social Exclusion survey has estimated that around 18 million people in the UK cannot afford adequate housing conditions. This shows that government policy to ensure adequate affordable housing stock has been ineffective and has left low paid workers facing significant social and economic inequalities. To redistribute resources in society and make Britain a fairer society there must be the political will and widespread popular support for such change. A more progressive tax structure, like that in Finland and Norway would be a good place to begin but is unlikely to happen under the current government.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
22.			30	Candidates can be credited in a number of ways *up to* ***a maximum of 30 marks***. **Credit responses that refer to** • non-governmental organisation (NGO) responses to inequality • role and function of NGOs • ability of NGOs to replace the state • NGOs and international development • effectiveness of NGOs in tackling poverty and inequality • effectiveness, or ineffectiveness, of government responses • the individualism and collectivism debate • relevant global comparator(s). *Award marks for any other relevant points.* **Possible approaches to answering this question** **Analysis and evaluation** **Response 1** *The theory of collectivism means that society is responsible for its entire people. In the UK, this happens via the Welfare State and the government has an obligation to provide health and education for all even when an individual seems to be responsible for the inequality they face, by making poor lifestyle choices. They believe that this is in actual fact caused by poor life chances and is not about choice at all. This is backed up by evidence that shows that even allowing for individual lifestyle choices, the poorest groups are still far more likely to die around ten years earlier and experience worse health. Countries with lower income inequalities have a smaller health gap. Collectivists stress the importance of fairness and equality — help and support is necessary to achieve this. In this sense, it could be argued that NGOs ought not to be required to tackle inequality, since it is the role of governments to look after their people. Individualists believe it is up to each of us to look after our own health and well-being. Incentives are necessary to encourage citizens to live healthy lives, but too much state intervention takes away the need for individuals to act responsibly themselves. In countries where the government takes this approach, it is highly likely that NGOs will be necessary to help provide support for those facing inequality, because it is not actually that straightforward to work your own way out of poverty and since the government has taken a step back from doing so themselves.* **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence with basic evaluation.** **Response 2** *Conservative government austerity measures have resulted in cuts to welfare and these cuts, among other factors, have worsened inequality in British society. The wealthiest Britons have seen significant rises to their incomes in comparison to other groups in society and this has led to growing wealth and health inequality. In the face of a programme of government policy that does not do enough to reduce inequality and arguably accentuates it, there is clearly a very big place for NGOs in trying to tackle the issue. In recent years, the growth in the number and use of food banks is indicative of the importance of NGOs like the Trussell Trust. Figures from a July 2021 report show that almost one in three people whose only income was through social security had been to a food bank in the previous year. This data from the Food and You survey shows that far too many people are being let down by the benefit system: the social security system should protect people from being pulled into*

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Question			Max mark	Detailed marking instructions for this question
				poverty and be strong enough to pull people out — but in reality, the benefit system forces too many to go without essentials such as food. The COVID-19 pandemic has directly contributed to an increased need for support from food banks. Food banks in the Trussell Trust network distributed 33% more food parcels in 2020/21 compared to 2019/20, reaching a record 2.5 million parcels. In addition to playing their part in providing much needed short term food relief, NGOs called upon the UK government to develop a plan to end the need for food banks and pressured them unsuccessfully not to go ahead with the planned cuts to Universal Credit and Working Tax Credit introduced in autumn 2021. **This example contains basic analysis of a key aspect with relevant, contemporary supporting evidence and accurate evaluation.** **Comparison** **Response 1** *NGOs play a significant and really important part in tackling inequality and aiding development, both in the UK and further afield. Since the 1990s, there has increasingly been a recognition that states are facilitators of development, in partnership with NGOs as service providing agencies. NGOs are also seen as appropriate vehicles for democratisation and strengthening civil society. Oxfam is a high profile example of an NGO striving to do just that, both in the UK and worldwide. 'Fight Inequality, Beat Poverty' is a campaign aimed at pressuring governments around the globe to tackle inequality, which Oxfam feel they're currently failing to do. The world's billionaires, only 2,153 people in 2019, have more wealth than 4.6 billion people. The 22 richest men have more wealth than all the women in Africa. Oxfam seeks to make sure the poorest have a voice, and those voices are heard by those in power.* **This example contains analysis of a key aspect, supported by relevant, contemporary evidence which refers to the UK/Scotland and another country.** **Response 2** *NGOs are playing an increasingly significant role in global governance, whether through the United Nations system or bringing global concerns to a domestic level. From local to global, NGOs are now an essential aspect of a variety of systems. Recent research evaluated the role of NGOs in responding to and tackling inequality caused and suffered during the recent COVID-19 pandemic and highlighted the very real need for and importance of diversity and inclusion in leading an effective response to humanitarian crises. In addition, it highlighted the importance of having a diverse range of people around the leadership table, and that effective decision-making requires that everyone can speak and have their views heard. If this were left solely to individual governments and relied upon whoever happened to be in positions of power at the time, it is likely that many people would be left without the support they needed. The International Committee of the Red Cross (ICRC) and the International Federation of the Red Cross and Red Crescent Societies (IFRC) launched a joint appeal to raise $3.19billion to respond to the COVID-19 pandemic and its socio-economic impacts. They aimed to respond to the emerging scale and scope of the current and projected impacts of the crisis. They were also well-positioned to help tackle the inequality brought about through the pandemic, due to their experience of conflict zone lockdowns and their experiences of prevention and management of Ebola, SARS, HIV/AIDS, cholera and other outbreaks. All of this expertise and knowledge has meant NGOs were hugely important in this regard.*

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Question			Max mark	Detailed marking instructions for this question
				This example contains balanced analysis of a key aspect, relevant contemporary evidence from the UK and other country/countries, evaluation of their similarities/differences and evaluation of the validity of alternative arguments. **Conclusions** **Response 1** *David Cameron's Big Society Initiative launched in 2010 was designed to encourage people to take a more active role in their communities (volunteerism), transfer power from central to local government and support charities and social enterprise. This clearly signals a very real and important role for NGOs in tackling inequality and suggests a mixed model of collective action and individualism as being the best way forward. More recently, Boris Johnson's government have talked of plans to 'level up', which led to organisations like the Equality Trust urging him to put a plan in place to do just this. They said that 'The Prime Minister's vow to tackle the entrenched inequalities and divisions exacerbated by the pandemic means nothing, without a tangible plan for action.' The role of NGOs to keep the pressure on governments to follow through with policy that could affect change is extremely important.* **This example contains a basic conclusion, draws analysis of key factors together and provides an overall judgement supported by reasons/evidence.** **Response 2** *It seems quite clear, therefore, that while most people would hope there should be in theory no need for NGOs to tackle inequality, they absolutely do have a place, as a result of systematic failures by successive governments to properly tackle the issue. NGOs play an important and pivotal role in supporting women, men and households, community groups, civil society groups and their role goes far beyond provision of short-term support in the form of, for example, food. They offer counselling and support services, awareness raising and advocacy, legal aid and microfinance. These services help people facing inequality to achieve their ability, skill and knowledge, and take control over their own lives and finally become empowered and self-reliant. NGOs have played an increasingly prominent role and have been widely praised for their strengths as innovative and grassroots-driven organisations with the desire and capacity to pursue participatory and people-centred forms of development and to fill gaps left by the failure of states across the world in meeting the needs of their poorest citizens.* **This example contains a detailed conclusion that evaluates key aspects of the question with a justified, balanced conclusion.**

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Question			Max mark	Detailed marking instructions for this question
23.			**15**	*Candidates can be credited in several ways up to **a maximum of 15 marks**.* **Credit responses that refer to:** **Online surveys:** • Survey Monkey, Survey Gizmo and Smart Survey are commercially available websites which allow individuals to create and easily disseminate online surveys • online surveys allow for information to be obtained quickly often covering a wide geographical area • online surveys collect more reliable data especially when using closed questions in comparison to qualitative methods • images, audio and video can be used to enrich questions or provide clarity to instructions, thus increasing the validity and reliability of results • participants can often take an online survey at a time and place that is convenient to them which can increase the response rate • the researcher is unlikely to be present (unless video conferencing technology or a webcam is used) which allows for more objective responses from the participant • sampling bias and expensive software can make some online surveys both unreliable and cost prohibitive. **Focus groups:** • research methods such as, focus groups offer researchers the opportunity to gather qualitative data that is often insightful with a high degree of validity • often captures the views and emotions of participants which can allow the researcher to better plan future research • better able to explain the 'why' and 'how' of participants • can often introduce more researcher bias in comparison to quantitative research methods. **Ethical issues including:** • consent • privacy • harm • deception. *Award marks for any other relevant points.* **Possible approaches to answering this question:** **Analysis and evaluation** **Response 1** *Online surveys are a useful method for researching the role of social media in portraying mental health issues. Online surveys can be inexpensive, quick to create and large sampling frames can be incorporated into the research.* **This example contains analysis of a relevant issue.**

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Question			Max mark	Detailed marking instructions for this question
				Response 2 *Online surveys are a useful method for researching the role of social media in portraying mental health issues. Online surveys can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free.* **This example contains analysis of a relevant point and supporting evidence.** **Response 3** *Online surveys are a useful method for researching the role of social media in portraying mental health issues. Online surveys can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free. However, quick online surveys containing closed questions have drawbacks and can only partially explain social media's portrayal of mental health issues. For example, the Health Study for England asks participants to self-assess their general health. Participants may misinterpret questions and answer inaccurately because there is no-one to clarify the questions. Online surveys are also unlikely to fully explain the nature of social media's portrayal of mental health issues and how this has changed over time.* **This example contains balanced analysis of a relevant point and supporting evidence and explanations which address the specified scenario.** **Response 4** *Online surveys are a useful method for researching the role of social media in portraying mental health issues. Online surveys can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free. However, quick online surveys containing closed questions have drawbacks and can only partially explain social media's portrayal of mental health issues. For example, the Health Study for England asks participants to self-assess their general health. Participants may misinterpret questions and answer inaccurately because there is no-one to clarify the questions. Online surveys are also unlikely to fully explain the nature of social media's portrayal of mental health issues and how this has changed over time.* *Qualitative research methods, such as interviews or focus groups, could gather valid data that more fully captures all the variables that contribute to the portrayal of mental health issues. Were focus groups to be used to explain the influence of social media for example, such qualitative data could shed light on the differences among social media channels in their portrayal of mental health issues. With a researcher fostering discussion among focus group members, different topics can be targeted providing an in-depth critique of social media and its portrayal of mental health issues over time. However, focus groups can be expensive, time consuming and, for an inexperienced researcher, focus groups can go off track or be dominated by one or two individuals, thus making results less valid and reliable.* **This example contains balanced analysis of a relevant point, supporting evidence and explanations which address the specified scenario and analysis of the opposing method.**

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Question			Max mark	Detailed marking instructions for this question
				Response 5 *Online surveys are a useful method for researching the role of social media in portraying mental health issues. Online surveys can be inexpensive, quick to create and large sampling frames can be incorporated into the research. For example, Smart Survey allows users to create online surveys using templates already created with up to fifteen questions for free. However, quick online surveys containing closed questions have drawbacks and can only partially explain social media's portrayal of mental health issues. For example, the Health Study for England asks participants to self-assess their general health. Participants may misinterpret questions and answer inaccurately because there is no-one to clarify the questions. Online surveys are also unlikely to fully explain the nature of social media's portrayal of mental health issues and how this has changed over time.* *Qualitative research methods, such interviews or focus groups, could gather valid data that more fully captures all the variables that contribute to the portrayal of mental health issues. Were focus groups to be used to explain the influence of social media for example, such qualitative data could shed light on the differences among social media channels in their portrayal of mental health issues. With a researcher fostering discussion among focus group members, different topics can be targeted providing an in-depth critique of social media and its portrayal of mental health issues over time. However, focus groups can be expensive, time consuming and, for an inexperienced researcher, focus groups can go off track or be dominated by one or two individuals, thus making results less valid and reliable. While collecting and storing data from both online surveys and focus groups researchers would have to adhere to the British Sociological Association's statement of ethical practice. Researchers conducting a focus group would also need to ensure that participants do not record the comments or images of other participants. Therefore, it is the researcher's duty to communicate to all participants what data will be collected and how long it will be stored to ensure data protection standards are adhered to.* **This example contains balanced analysis of a relevant point, supporting evidence and explanations which address the specified scenario, analysis of the opposing method and consideration of ethical issues related to one method.** **Conclusions** **Response 6** *Online surveys are a more effective method for gathering data on the role of social media in portraying mental health issues. This is because many online surveys are inexpensive, quick to create and large sampling frames can be incorporated into the research.* **This concluding remark summaries key points — 1 mark.**

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Question			Max mark	Detailed marking instructions for this question
				Response 7 *Online surveys are a more effective method for gathering data on the role of social media in portraying mental health issues. This is because many online surveys are inexpensive, quick to create and large sampling frames can be incorporated into the research. Online surveys also tend to be quantitative allowing for comparisons to be made and results to be analysed quickly. Therefore, findings from the group studied in the sample can be applied to make generalisations about the wider population.* **This concluding remark clearly shows which method is preferred, supported with reasons — 2 marks.** **Response 8** *Online surveys are a more effective method for gathering data on the role of social media in portraying mental health issues. This is because many online surveys are inexpensive, quick to create and large sampling frames can be incorporated into the research. Online surveys also tend to be quantitative allowing for comparisons to be made and results to be analysed quickly. Therefore, findings from the group studied in the sample can be applied to make generalisations about the wider population. Although focus groups can produce more qualitative data, it is difficult for this research method to enable the researcher to draw generalisations about social media's portrayal of mental health issues across the wider population.* **This concluding remark clearly shows which method is preferred, supported with reasons for rejecting the other method — 3 marks.**

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Question			Max mark	Detailed marking instructions for this question
24.			**15**	Candidates can be credited in several ways up to **a maximum of 15 marks**. **Credit responses that refer to:** **Arguments that the source is valid and/or reliable:** • Source C is a blog on the Trades Union Congress website based on multiple surveys carried out • surveys carried out on behalf of the TUC by trained researchers and statisticians from ICM and Britain Thinks • further analysis from the TUC of labour market trends by ethnicity and gender using the Labour Force Survey and Family Resources Survey suggest valid and reliable conclusions were drawn • TUC General Secretary Frances O'Grady is quoted summarising the main findings of the surveys further adding to the validity of Source C • a comparison sample of over 1,700 white people included to further explore the differences of white and BAME people in Britain and their experiences at work • the methodology section provides definitions for several key terms which appear in one of the surveys thereby increasing the validity and reliability of the survey data collected • the ICM Survey was weighted by gender further improving the reliability of the data collected • the table allows comparison between gender and ethnic groups. *Award credit for any other relevant points.* **Arguments that the source's validity and/or reliability are questionable:** • a blog on the Trades Union Congress website inherently comes with a degree of bias as they are a pressure group advocating for the rights of workers • the 'comparison sample' survey states that Whites and BAME people were asked about 'certain experiences,' but no additional information is provided. This lack of information damages the validity and reliability of the data collected • the ICM online survey may result in a lower response rate from those who do not feel proficient using technology thereby damaging the credibility of the data • survey data relies on all participants adhering to the same definitions for terms such as insecure work, temporary work and zero-hour workers. Respondents that do not have the same understanding of key terms will generate less reliable data • the source does not contain direct quotations from BAME workers who experienced discrimination or sexism at work. Such source omission limits the ability of the blog to explain why and how such discrimination and sexism persist in the workplace • the table does not show trends over time. *Award credit for any other relevant points.*

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Question			Max mark	Detailed marking instructions for this question
				Possible approaches to answering this question: **Analysis and evaluation** **Response 1** *Source C has been produced by the Trades Union Congress, a pressure group representing approximately 5.5 million workers in the United Kingdom. The TUC is often consulted by UK governments on legislation affecting its members. It is an authoritative voice on employment rights and can therefore be considered a trustworthy source on equality in the workplace.* **This example contains analysis of one key aspect related to the trustworthiness of the source.** **Response 2** *Source C has been produced by the Trades Union Congress, a pressure group representing approximately 5.5 million workers in the United Kingdom. The TUC is often consulted by UK governments on legislation affecting its members. It is an authoritative voice on employment rights and can therefore be considered a trustworthy source on equality in the workplace. In addition, this TUC blog is written using valid and reliable statistics from multiple surveys each with over 1,000 respondents. One such survey is from ICM Unlimited, a public opinion research company with over three decades of experience and a member of the British Polling Council. The ICM survey interviewed a representative sample of 1,253 British Black and minority ethnic workers online over the age of eighteen in March 2020 to get their view of discrimination and sexism in the workplace. Using such a credible polling firm suggests valid and reliable data would be collected. This data could then be used to draw generalisations about workplace culture throughout Britain.* **This example contains analysis, supported by evidence, of one key aspect related to the trustworthiness of the source.** **Response 3** *Source C has been produced by the Trades Union Congress, a pressure group representing approximately 5.5 million workers in the United Kingdom. The TUC is often consulted by UK governments on legislation affecting its members. It is an authoritative voice on employment rights and can therefore be considered a trustworthy source on equality in the workplace. In addition, this TUC blog is written using valid and reliable statistics from multiple surveys each with over 1,000 respondents. One such survey is from ICM Unlimited, a public opinion research company with over three decades of experience and a member of the British Polling Council. The ICM survey interviewed a representative sample of 1,253 British Black and minority ethnic workers online over the age of eighteen in March 2020 to get their view of discrimination and sexism in the workplace. Using such a credible polling firm suggests valid and reliable data would be collected. This data could then be used to draw generalisations about workplace culture throughout Britain. However, Source C is a blog and is the view of a pressure group advocating for equal rights of the workers it represents. As such, the blog may come with a degree of bias. The author of the blog is not given in the source which reduces the validity of the source. There are also significant omissions in Source C which limit the ability of researchers to scrutinise its trustworthiness. For example, there are no extracts from any of the surveys, so researchers are not able to examine the quality and type of survey questions to see if comparisons within or among surveys could be made.*

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Question			Max mark	Detailed marking instructions for this question
				This example contains analysis and evaluation of strengths and weaknesses of two key aspects of the source, supported by knowledge of social science research. **Response 4** *Source C has been produced by the Trades Union Congress, a pressure group representing approximately 5.5 million workers in the United Kingdom. The TUC is often consulted by UK governments on legislation affecting its members. It is an authoritative voice on employment rights and can therefore be considered a trustworthy source on equality in the workplace. In addition, this TUC blog is written using valid and reliable statistics from multiple surveys each with over 1,000 respondents. One such survey is from ICM Unlimited, a public opinion research company with over three decades of experience and a member of the British Polling Council. The ICM survey interviewed a representative sample of 1,253 British Black and minority ethnic workers online over the age of eighteen in March 2020 to get their view of discrimination and sexism in the workplace. Using such a credible polling firm suggests valid and reliable data would be collected. This data could then be used to draw generalisations about workplace culture throughout Britain.* *However, Source C is a blog and is the view of a pressure group advocating for equal rights for the workers it represents. As such, the blog may come with a degree of bias. The author of the blog is not given in the source which reduces the validity of the source. There are also significant omissions in Source C which limit the ability of researchers to scrutinise its trustworthiness. For example, there are no extracts from any of the surveys, so researchers are not able to examine the quality and type of survey questions to see if comparisons within or among surveys could be made.* *To increase the trustworthiness of the source the core survey questions from one or more of the surveys could be included along with the closed question response options. Examining the wording of questions can ensure that respondents were not led to answer in a certain way. Removing any bias and ensuring the meaning of certain key words are clear to all respondents would further result in the collection of more valid and reliable data.* **This example contains analysis and evaluation of a key aspect of the source supported by knowledge and social science research and reference to additional or alternative approaches which increase the trustworthiness of the source.** **Conclusions** **Response 5** *Overall, Source C is a trustworthy source as it is from the Trades Union Congress and based on multiple surveys, each with over 1,000 respondents.* **This example contains a simple summary of key points — 1 mark.**

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Question			Max mark	Detailed marking instructions for this question
				Response 6 *Overall, Source C is a trustworthy source as it is from the Trades Union Congress and based on multiple surveys, each with over 1,000 respondents. One polling company used was ICM Unlimited which has considerable experience in polling adults in Britain. Such surveys would be carried out by experienced, trained researchers and statisticians and would therefore give the data collected a high degree of validity and reliability.* **This example contains a clear overall judgement about the trustworthiness of the source supported by reasons/evidence — 2 marks.** **Response 7** *Overall, Source C is a trustworthy source as it is from the Trades Union Congress and based on multiple surveys, each with over 1,000 respondents. One polling company used was ICM Unlimited which has considerable experience in polling adults in Britain. Such surveys would be carried out by experienced, trained researchers and statisticians and would therefore give the data collected a high degree of validity and reliability.* *However, despite reliable statistical data showing discrimination and sexism in the workplace for BAME people, the blog comes from the Trades Union Congress which is a pressure group aiming to protect the rights of the unions and workers it represents. It therefore continually aims to shed light on any inequality and workplace injustice. It would benefit from more directly illustrating the experiences of BAME people at work. The methodology behind some of the surveys is also not included which makes further scrutiny difficult. Despite these drawbacks Source C contains a very high degree of validity and reliability.* **This example contains a clear overall judgement about the trustworthiness of the source supported by analysis and evaluation — 3 marks.**

END OF MARKING INSTRUCTIONS

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